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Law

VICTIM AND WITNESS RIGHTS AND PROCEDURES

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This publication implements Department of Defense Instruction (DoDI) 1030.02, *Victim and Witness Assistance*, DoDI 1030.04, *Special Victims' Counsel Programs*, Department of the Air Force Policy Directive (DAFPD) 51-2, *Military Justice and Other Criminal Proceedings*, and is consistent with Department of the Air Force Instruction (DAFI) 51-201, *Administration of Military Justice*. It provides guidance and procedures on victims' rights, implementation of the Victim and Witness Assistance Program (VWAP), and the Victims' Counsel (VC) Program. It establishes responsibility for VWAP at the Headquarters, Department of the Air Force (collectively, the Air Force and Space Force, which are herein referred to as "Department of the Air Force" or "DAF") and subordinate levels in the DAF. It provides guidance for the treatment of victims and witnesses of offenses in violation of the Uniform Code of Military Justice (UCMJ) during those stages of the criminal or administrative processes conducted primarily by the DAF. This publication applies to the United States Space Force, the United States Air Force Academy (USAFA), Regular Air Force, the Air Force Reserve, and the Air National Guard, except where otherwise noted. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using the DAF Form 847, *Recommendation for Change of Product*; route DAF Forms 847 from the field through the appropriate chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, Table A10.1, for a description of the authorities associated with the tier numbers. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority. All waivers of non-tiered compliance statements must be submitted to the Military Justice and Policy Division, FOA/JAJM, the publication OPR. Ensure

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SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. This document has clarified that the VWAP applies only to victims and witnesses of crimes under the UCMJ. Victim and witness notifications have been divided into sections related to case progression. Portions of this document which were duplicative of other instructions and/or were redundant have been deleted.

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Chapter 1

OVERVIEW, TEMPLATES, ROLES & RESPONSIBILITIES

Section 1A—Overview

1.1. Overview. Victim and witness policy provides guidance for the protection and assistance of victims and witnesses and enhances their roles in the disciplinary process throughout the investigative, military justice, and disciplinary processes in the DAF. This policy is intended to uphold these tenets while preserving the Constitutional rights of the accused. This instruction does not create any entitlement, cause of action, or defense at law or in equity, in favor of any person or entity arising out of the failure to provide a victim or a witness the assistance outlined in this instruction. No limitations are hereby placed on the lawful prerogatives of the DAF or its officials.

1.2. Waiver Authority. All requirements that are not tiered may only be waived by the Military Justice Law and Policy Division (JAJM) or superior functional authority in coordination with JAJM. Submit waiver requests via DAF Form 679 through the appropriate chain of command.

1.3. Templates. Use of all template documents implementing the UCMJ and Manual for Courts-Martial (MCM) that are referenced in this instruction is mandatory. Legal offices must use JAJM-produced formats that are included on the Virtual Military Justice Deskbook (VMJD), available both through the Military Justice section of Knowledge Management on FLITE and via Teams in the JAJM Outreach and Training team. The VWAP Coordinator shall be a member of the VWAP Forum, found on Teams in the JAJM Outreach and Training Team. Other VWAP personnel may also participate in the VWAP Forum, at the discretion of JAJM. Deviation from substantive provisions is not authorized without prior approval of JAJM. This prohibition does not prevent template modifications to address the facts and circumstances of each individual case (e.g., names, addresses, offense types).

1.4. VWAP Checklist. The VWAP checklist for victim and witness notifications and consultations can be found on the VMJD. This checklist must be used for all victims within the purview of the VWAP, as defined in the terms of this instruction.

Section 1B—Roles and Responsibilities

1.5. Secretary of the Air Force. Exercises DAF secretarial authorities set out in the UCMJ, MCM, and DAFPD 51-2, *Military Justice and Other Criminal Proceedings*; issues DAFPD 51-2 and other regulations to implement the UCMJ, MCM, and Department of War (DoW) policy; authorizes The Judge Advocate General (TJAG) to issue publications and establish procedures related to the administration of military justice and VWAP in the DAF.

1.6. The Judge Advocate General. Exercises TJAG authorities set out in 10 U.S.C. § 9037, *Judge Advocate General, Deputy Judge Advocate General: appointment; duties*, the UCMJ, MCM, and DAFPD 51-2 for the DAF. Certifies or delegates the certification of DAF 51-series publications establishing procedures to administer military justice in the DAF. Serves as the Component Responsible Official for the DAF VWAP.

1.7. Military Justice and Discipline Directorate (FOA/JAJ). Exercises supervisory responsibility for subordinate divisions, including: Appellate Defense Division (JAJA), Trial Defense Division (JAJD), Government Trial and Appellate Operations Division (JAJG),

Investigations, Inquiries, and Relief Division (JAJI), the Military Justice Law and Policy Division (JAJM), Office of Disability Counsel (JAJO), and Victims' Counsel Division (JAJS).

1.8. Military Justice Law and Policy Division (FOA/JAJM). Provides counsel, guidance, and support to Headquarters DAF, court-martial convening authorities, and staff judge advocates (SJAs) on the administration of military justice, discipline, and VWAP; functions as a component of the Office of The Judge Advocate General (AF/JA) for matters pursuant to the UCMJ; serves as the office of primary responsibility for this instruction and other publications establishing procedures to administer military justice in the DAF.

1.9. Victims' Counsel Division (FOA/JAJS). Provides counsel and legal representation to eligible victims. Serves to educate eligible clients on the investigative and military justice processes, protect and enforce victims' rights, and facilitate victim participation consistent with 10 U.S.C. § 1044e, *Special Victims' Counsel for victims of sex-related offenses*, federal law, DoW policy, and DAF policy. Provides policy guidance on legal representation of victims in accordance with 10 U.S.C. § 1044e, DoDI 1030.04, and DAFPD 51-2.

1.10. Trial Judiciary (AF/JAT). Provides support to military courts-martial throughout the DAF; details trial judges to courts-martial; dockets courts-martial; provides oversight of military judges and court reporters throughout the DAF; prescribes the Uniform Rules of Practice before Department of the Air Force Courts-Martial; and prescribes guidance for military judges regarding procedural and substantive aspects of trials by courts-martial.

1.11. Staff Judge Advocate (SJA). Performs the duties of the SJA set forth in the UCMJ and MCM; executes installation-level Local Responsible Official (LRO) responsibilities and authorities delegated by the LRO, if applicable; serves as the senior legal representative to the LRO; serves as, or designates in writing, a VWAP Coordinator, and coordinates with the LRO to appropriately resource the VWAP; ensures VWAP Coordinator develops VWAP training syllabus; ensures legal office personnel with VWAP duties accomplish required VWAP, Sexual Assault Prevention and Response (SAPR) program, and Family Advocacy Program (FAP) training pursuant to DAFI 90-6001, *Sexual Assault and Prevention Program*, and DAFI 40-301, *Family Advocacy Program*; ensures victims and witnesses are notified of applicable rights and services; coordinates, as needed, on expedited transfer requests, humanitarian assignments, and other personnel or command requests pertaining to movement of victims and subjects in ongoing investigations and prosecutions; coordinates on requests for return of personal property to victims of crime, in accordance with DoDI 5505.18, *Investigation of Adult Sexual Assault in the Department of Defense*, and federal law; ensures military justice and discipline-related victim consultations and notifications are accomplished in accordance with the MCM, DoW policy, DAF policy, and this instruction; ensures attorneys are assigned to support the High Risk for Violence Response Team (HRVRT), FAP Central Registry Board, and SAPR Case Management Group (CMG); ensures the local requirements of the Special Victims' Investigation and Prosecution (SVIP) capability are satisfied, in accordance with DAFI 51-201.

1.12. Trial Counsel and Special Trial Counsel (when applicable).

1.12.1. Prior to conducting a sexual assault victim interview, ensures unrepresented, but eligible victims have been informed of the right to victims' counsel (VC) representation, access to legal assistance, and services of a Sexual Assault Response Coordinator (SARC), unless exigent circumstances prevent doing so. **(T-0)** See 10 U.S.C. § 1565b(a)(2) and (a)(3), *Victims of sexual assault: access to legal assistance and services of Sexual Assault Response*

Coordinators and Sexual Assault Victim Advocates. Exigent circumstances may include, but are not limited to, the need to collect evidence subject to degradation or to prevent or mitigate a serious and imminent threat to the health or safety of the victim or other person.

1.12.2. Provides any motions impacting a victim's rights or privileges to the victim (or, if represented, to victim's VC or Article 6b representative) and notifies any victim or witness of a motion or ruling affecting the victim's or witness's rights or privileges, to include providing access to motions or other court documents in accordance with the Rules for Courts-Martial (R.C.M.), the UCMJ, or other law or regulation, including where necessary to comply with Article 6b, UCMJ. An Article 6b representative is a person who is designated to assume the rights of a victim who is under 18 years of age (but who is not a member of the armed forces), or who is incompetent, incapacitated, or deceased. See Article 6b(c) UCMJ; R.C.M. 309(b)(5); and DAFI 51-201, Chapter 7.

1.12.3. Ensures the government's responsibilities to victims and witnesses under the UCMJ and MCM are fulfilled.

1.12.4. Notifies the military judge and defense counsel of any unrepresented victim's or witness's assertion of a right or privilege related to the court-martial.

1.12.5. Informs VWAP coordinators of additional victims and witnesses identified after the investigation is completed to ensure the DD Form 2701, *Initial Information for Victims and Witnesses of Crime*, is provided to these victims and witnesses.

1.13. Victims' Counsel (VC). Throughout the investigative, military justice, and disciplinary processes, provides services to eligible victims in accordance with the provisions of this instruction and coordinates with servicing legal offices, VWAP Coordinator, and VWAP personnel. See 10 U.S.C. § 1044e and DoDI 1030.04.

1.14. Air Force Office of Special Investigations (AFOSI).

1.14.1. Exercises law enforcement responsibilities relating to matters within AFOSI jurisdiction, including receipt, storage, and disposition of evidence.

1.14.2. Collaborates with the VWAP Coordinator and SJA to provide VWAP training, as needed.

1.14.3. When necessary, protects victims and witnesses from offenders. This includes participation in the Threatened Person Assignment Program, which can afford immediate removal of service members and dependents from a life-threatening situation when they have received threats of bodily harm or death. See DAFI 36-2110, *Total Force Assignments*. Is knowledgeable of safety considerations, and, when appropriate, takes necessary steps to ensure the safety of victims and witnesses.

1.14.4. Provides victims and witnesses, at the earliest opportunity, the DD Form 2701, *Initial Information for Victims and Witnesses of Crime*. **(T-0)** Annotates on incident reports the date of distribution of the DD Form 2701. Tracks the provision of DD Form 2701 to victims and witnesses. Provides the servicing legal office an annual accounting of the separate numbers of forms provided to victims and witnesses to facilitate completion of the annual VWAP Report.

1.14.5. Additional Responsibilities Afforded to Victims. During the investigation of a crime, law enforcement and investigative personnel will, as appropriate, and in accordance with DoDI

1030.02, identify crime victims and inform the victim of the investigation status, to the extent it will not interfere with the investigation and is appropriate. **(T-0)**

1.14.6. Additional Responsibilities to Sexual Assault Victims. If the victim alleges a sex-related offense, law enforcement must inform the victim of the option to request assistance from theSARC, Victim Advocate (VA), and VC in accordance with 10 U.S.C. § 1565b, unless exigent circumstances prevent doing so. **(T-0)** Exigent circumstances may include, but are not limited to, the need to collect evidence subject to degradation or to prevent or mitigate a serious and imminent threat to the health or safety of the victim or other person. Process requests for return of personal property in accordance with DoDI 5505.18. **(T-0)**

1.15. Security Forces.

1.15.1. Exercises law enforcement responsibilities relating to matters within Security Forces jurisdiction, including receipt, storage, and disposition of evidence.

1.15.2. Collaborates with VWAP Coordinator and SJA to provide VWAP training, as needed.

1.15.3. Provides victims or witnesses, at the earliest opportunity, the DD Form 2701. **(T-0)** Annotates on incident reports the date of distribution of the DD Form 2701. Tracks the provision of DD Form 2701 to victims and witnesses and provides an annual accounting of the separate numbers of forms provided to victims and witnesses to the servicing legal office in order to facilitate completion of the annual VWAP Report. **(T-1)**

1.15.4. When necessary, protects victims and witnesses from offenders. This includes participation in the Threatened Person Assignment process. See DAFI 36-2110. Is knowledgeable of safety considerations, and when appropriate, takes necessary steps to ensure the safety of victims and witnesses.

1.15.5. Additional Responsibilities Related to Victims. During the investigation of a crime, law enforcement and investigative personnel will, as appropriate, and in accordance with DoDI 1030.02, identify crime victims and inform the victim of the investigation status, to the extent it will not interfere with the investigation and is appropriate. **(T-0)**

1.15.6. If the victim alleges a sex-related offense, law enforcement must inform the victim of the option to request assistance from the SARC, VA, and VC in accordance with 10 U.S.C. § 1565b, unless exigent circumstances prevent doing so. **(T-0)** Exigent circumstances may include, but are not limited to, the need to collect evidence subject to degradation or to prevent or mitigate a serious and imminent threat to the health or safety of the victim or other person.

1.16. Local Responsible Official (LRO). Identifies victims and witnesses of crimes, coordinates the delivery of services required by the VWAP, resources the VWAP, and establishes and chairs the VWAP council. Ensures the provisions of this chapter are publicized to all military and civilian agencies providing victim and witness services within their communities. Note: See **paragraph 2.9** for discussion of the identity of the LRO and delegation of authority and responsibilities.

1.17. Commander.

1.17.1. Is knowledgeable of safety considerations, and when appropriate, takes necessary steps to ensure the safety of victims and witnesses.

1.17.2. Takes reasonable and necessary steps to ensure victims and witnesses are adequately protected during the period of investigation and prosecution, to include protection from retaliation and ostracism, while also considering the rights of the accused.

1.17.3. Issues protective orders when the circumstances require. See DoDI 6400.06, *DoD Coordinated Community Response to Domestic Abuse Involving DoD Military and Certain Affiliated Personnel*, DoDI 6495.02, Volume 1, *Adult Sexual Assault Prevention and Reponse Program Procedures*, and DAFI 90-6001. See DAFI 51-201 for further discussion on the types, processing and rescission of protective orders.

1.17.4. Refers victims of crime who wish to seek legal services to the local VWAP.

1.17.5. Refers victims of sexual assault to the local SARC, VA, FAP, or VC, as applicable.

1.17.6. Ensures victims within the command receive appropriate notifications.

1.17.7. Exercises initial disposition authority, in accordance with R.C.M. 306 and DAFI 51-201.

1.18. Victim Witness and Assistance Program (VWAP) Coordinator. When delegated the authority by the LRO and SJA, implements and manages the VWAP on behalf of the LRO and SJA. Ensures accomplishment of required training by all local agencies; coordinates with servicing law enforcement (e.g., AFOSI, Security Forces, local law enforcement) to facilitate law enforcement-specific training, as needed; ensures VWAP responsibilities to victims and witnesses are accomplished and documented; serves as or appoints Victim/Witness Liaison (VWL) in a particular case. Designates an appropriately trained VWL to a particular victim or witness in order to facilitate notifications and provision of services. Where necessary, designates an appropriately trained VWL from another legal office to a particular victim or witness, with the concurrence of the VWL's SJA. Note: This instruction does not discuss the responsibilities of the Confinement VWAP Coordinator. See DAFMAN 31-115 Volume 1, *Department of the Air Force Corrections System*.

1.19. Victim/Witness Liaison (VWL). Ensures completion and documentation of victim notifications, services, and coordination. Works with the VWAP Coordinator, if applicable, to complete VWAP Checklist. Serves as a member of the applicable Criminal Investigation and Prosecution (CIP) capability team or SVIP capability team, IAW DAFI 51-201. Note: This may be the VWAP Coordinator or any person designated by the VWAP Coordinator and SJA.

1.20. Court-Martial Referral and Convening Authority. The referral authority considers victim input, if provided, in determining appropriate initial disposition of an offense. The Convening Authority provides funding for sexual assault victim escort or attendant, expert witnesses and consultants, and other witness travel, where applicable; serves as LRO, where applicable. See **paragraph 2.9**.

1.21. Family Advocacy Program (FAP).

1.21.1. Develops, implements, and evaluates programs and policies to prevent and treat domestic abuse and child maltreatment.

1.21.2. Employs Domestic Abuse Victim Advocates (DAVA).

1.21.3. Refers domestic violence victims to the local Victims' Paralegal (VP) if they wish to seek legal services and they are eligible for VC services or it is unclear whether they are eligible.

1.21.4. Refers domestic violence victims who make unrestricted reports (i.e., reports made for the purpose of initiating an investigation) of domestic violence to the local VWAP if they wish to seek legal services and are ineligible for a VC.

1.21.5. Enters into memoranda of understanding (MOUs) or agreement (MOAs) related to victim services with local community partners.

1.22. Sexual Assault Prevention and Response (SAPR) Program. The SAPR program provides support to victims of military sexual harassment and to eligible adult victims of sexual assault when the assault was perpetrated by someone other than a spouse, person with whom they share a child, or a person with whom they have shared a common domicile. The SAPR program employs SARCs andVAs. SARCs co-chair, along with the installation commander, monthly and quarterly CMG meetings which relevant VWAP personnel attend. See DoDI 6495.02, Volume 1, Enclosure 9, and DAFI 90-6001 for additional information about CMG meetings. SARCs are certified victim advocates, and their communications with victims are privileged under Military Rule of Evidence 514, subject to the limitations of the privilege as described in the rule.

1.23. Victim Advocates (VAs). Provide essential support, liaison services, and care to victims on behalf of the program with which they are associated (either FAP or SAPR); provide crisis intervention, referral and ongoing non-clinical support, and information on available options and resources to assist a victim in making informed decisions related to investigative, administrative, or court-martial processes and proceedings; provide services until the victim states support is no longer needed or the victim is no longer eligible for services. Do not provide counseling or other professional services to victims; instead, VAs refer victims to the appropriate agency for clinical, legal, and other professional services. May accompany victims, at the victim's request, to investigative interviews, medical examinations, and to civilian and military court proceedings. **Note:** VAs' communications with victims are privileged under M.R.E. 514, subject to the limitations of the privilege as described in the rule.

Chapter 2

VICTIM WITNESS ASSISTANCE PROGRAM

Section 2A—Administration of the VWAP

2.1. General Provision. This chapter, in conjunction with **Chapter 5** and **Chapter 6**, implements DoDI 1030.02. Funding for VWAP is an operations and maintenance-type expense. See DoDI 6400.07, *Standards for Victim Assistance Services in the Military Community*, for competency, ethical, and foundational standards for victim assistance programs.

2.2. Access to the Victim and Witness Assistance Program. VWAP obligations exist in all cases involving crimes committed in violation of the UCMJ where any portion of the investigation, prosecution, or administrative action is conducted primarily by DoW components.

2.3. Identification of Victims and Witnesses. After the detection of a crime, any potential victim of an offense shall be identified at the earliest opportunity without interfering with an investigation, or Office of Special Trial Counsel (OSTC) SVIP or Criminal Investigative and Prosecution (CIP) activity. For guidance on defining "victim" and "witness," see the "Terms" section of this instruction. VWAP personnel will work with the servicing law enforcement agency to deconflict initial contact. VWAP personnel will pay special attention to victims of serious, violent crime, but ensure all victims and witnesses of crime receive the assistance and protection to which they are entitled. While various DAF agencies have particular responsibility for the program, the provision of victim and witness assistance is to be a coordinated effort among all agencies providing services to individuals.

2.4. VWAP Designation in JAGC "ROSTER." The SJA will ensure that the VWAP Coordinator for each servicing installation legal office is identified in the duty title field on the Air Force Judge Advocate General's intranet site "ROSTER," found on FLITE. Abbreviations may be used.

2.5. VWAP Forum. The VWAP Forum is a Microsoft Teams-based collaboration tool for VWAP personnel at the Headquarters and local level. The VWAP Forum is located in the JAJM Outreach and Training team. The VWAP Coordinator shall be a member of the VWAP Forum. Other VWAP personnel may also participate in the VWAP Forum, at the discretion of JAJM. The forum is used for professional coordination and may be subject to discovery, depending on the nature of the information added to the forum.

2.6. VWAP Objectives.

2.6.1. Mitigate the physical, emotional, and financial hardships suffered by victims and witnesses of crimes under the UCMJ.

2.6.2. Foster cooperation of victims and witnesses with the military criminal justice system.

2.6.3. Ensure victims are afforded certain enumerated rights, including those described in Article 6b, UCMJ, and the right to legal assistance (if eligible).

2.7. VWAP Council.

2.7.1. The senior DAF LRO at an installation is responsible for establishing a VWAP council to ensure victim and witness service providers follow an interdisciplinary approach. **(T-0)** The

council promotes efficiencies, coordinates victim assistance-related programs, and assesses the implementation of victim assistance standards and victim assistance-related programs, in accordance with DoDI 1030.02, DoDI 64007.07, and this instruction. The following agencies or functions will designate program representatives: SARC, FAP, Security Forces, AFOSI, Surgeon General (SG) (or Medical Treatment Facility, Group, Clinic, etc., if no SG is present), Military and Family Readiness Center (MFRC), Chaplain, and SJA. If any of these agencies are not physically present (e.g., certain joint installations, expeditionary installations), the LRO will execute MOUs with the agencies servicing the installation in those roles to appoint personnel to the VWAP council.

2.7.2. The LRO appoints at least one squadron commander and at least one first sergeant to the council.

2.7.3. The LRO may appoint other representatives as appropriate.

2.7.4. The LRO chairs the council, which must meet at least annually.

2.7.5. VWAP council members are responsible for ensuring and documenting that members of their respective agencies are trained annually on VWAP procedures. See **paragraph 2.13**.

2.7.6. Where appropriate, one or more LROs may collaborate to appoint a single VWAP council, so long as program representatives from all servicing agencies noted in **paragraph 2.7.1** are designated.

2.8. Victim Information Packet (Military Justice at a Glance). The VWAP Coordinator shall prepare a victim information packet through the coordinated efforts of the SJA, Security Forces, AFOSI, SARC, FAP, SG (or Medical Treatment Facility, Group, Clinic, etc., if no SG is present) MFRC, Installation Chaplain, commanders and first sergeants. The packet includes, at a minimum, an overview of the military justice process and the victim's role in it, the victim's rights and privileges, and a listing of local services (e.g., medical, chaplain, legal, mental health, advocacy services) available and contact information for those agencies. JAJM publishes a model packet on the VMJD, which should be modified for local circumstances. The VWAP coordinator shall ensure the packet is provided to victims eligible for VWAP services. The provision of the packet may satisfy certain notification requirements found in DoDI 1030.02, paragraph 3.2, when the relevant information is contained in the packet.

2.9. Identifying the Applicable LRO. The applicable LRO is identified as follows:

2.9.1. In a case involving an offense alleged to have been committed by an individual subject to the UCMJ, the first DAF commander with special court-martial convening authority (SPCMCA) in the subject's chain of command is the LRO. Typically, this will be the installation commander. **Note:** General courts-martial convening authorities (GCMCAs) do not ordinarily serve as LROs. In cases where the subject is an SPCMCA or works directly for the GCMCA and is not in the chain of command of a commander with only SPCMCA authority, contact JAJM for guidance.

2.9.2. The LRO for cases in which the subject is assigned or attached to a traditional (standalone) Air Reserve Base (ARB) where the installation commander is not a SPCMCA shall be the LRO of the nearest Regular Air Force (RegAF) or Space Force installation, as determined by geographical mileage. Accordingly, VWAP responsibilities for traditional (standalone) ARBs without SPCMCAs are the responsibility of the nearest RegAF or Space

Force VWAP. This is to ensure continuity and regular support to victims and witnesses of cases arising from traditional ARBs not staffed with full-time VWAP personnel.

2.9.3. If a case arising from a traditional ARB is being prosecuted by a RegAF or Space Force installation legal office other than the nearest RegAF or Space Force installation, the LRO and VWAP for the servicing installation shall be the LRO and VWAP for the case.

2.9.4. In a case involving an offense alleged against an individual not described above but involving DAF equities, the senior DAF SPCMCA at the installation where the investigation occurs is the LRO.

2.9.5. In cases where the victims or witnesses are not located at or near the LRO's installation, and in cases where there are multiple possible LROs, the LROs will coordinate the delivery of services, consultations, and notifications. The LROs' servicing SJAs must facilitate coordination to ensure appropriate delivery of services to eligible victims and witnesses.

2.10. Delegation of LRO Duties. Unless otherwise restricted, the LRO identified above may delegate his or her authorities as LRO to the servicing SJA, who may in turn delegate LRO authorities to a VWAP Coordinator. The delegation must be in writing and addressed to the LRO's SJA by duty title rather than name. Any further delegation to a VWAP Coordinator must also be in writing.

2.11. Responsibility for LRO Duties. Even if an LRO delegated his or her authorities to the servicing SJA or VWAP Coordinator, the LRO is ultimately responsible for ensuring the requirements of the VWAP and LRO are accomplished in accordance with federal law, DoW policy, and this instruction.

2.12. VWAP Inspection by LRO. LROs will assess the effectiveness of their VWAP by periodically inspecting the program. Inspection procedures will include: creation and maintenance of a record of each case involving victims, witnesses, or others entitled to notice; documentation of completion dates of notifications; and issuance of DD Forms 2701–2704-1. LROs will use the Article 6 Inspection Checklist available on the VMJD. Staff assistance visits and other inspections shall examine the effectiveness of the VWAP and compliance with VWAP requirements.

2.13. VWAP Local Training. The senior DAF LRO at an installation is responsible for ensuring required VWAP training is conducted. Training is provided annually.

2.13.1. Local Training in General. All personnel involved in the military investigative or criminal justice process and those responsible for providing required services to victims and witnesses (of offenses committed under the UCMJ) must be familiar with the requirements of the VWAP. The LRO is responsible for developing and implementing a program at each installation. The LRO coordinates all training required by this chapter.

2.13.1.1. Local training includes legal office personnel responsible for military justice matters or the provision of legal assistance.

2.13.1.2. Local training includes the completion of annual training by local agencies which provide services to victims and witnesses of crime. **(T-0)** Local agencies that service more than one LRO or participate in more than one VWAP council are not required to accomplish redundant annual VWAP training.

2.13.2. Provision of Local VWAP Training. Together, the installation SJA, Security Forces commander, AFOSI detachment commander, SARC, FAP, SG (or Medical Treatment Facility,

Group, Clinic, etc., if no SG is present), MFRC, Chaplain, commanders, and first sergeants receive training to ensure compliance with the VWAP. Such training is ordinarily provided by the LRO, but each agency is authorized to provide such training as it applies to their mission.

2.13.3. Accomplishment of Annual Training. Each agency/function assigned to the VWAP council, unless otherwise or additionally listed in this chapter, is authorized to train its own agency's personnel on their responsibilities under this chapter annually and report completed training to the VWAP Coordinator. JA trains commanders and first sergeants. The SJA or LRO will consider conducting the VWAP training at the Community Action Board. See DAFI 90-5001, *Integrated Resilience*.

2.14. VWAP Symposium.

2.14.1. Attendance Requirement. The VWAP Coordinator shall attend the DAF VWAP symposium or an equivalent training prior to or as soon as practicable after appointment as VWAP Coordinator. JAJM will determine whether a training program amounts to "an equivalent training." Expeditionary units are exempt from this requirement. Course attendance will be reflected in ROSTER under the "training" field found in the "update personal data" section.

2.14.2. Minimum Training Requirement. The following are minimum required training topics for the VWAP symposium:

2.14.2.1. Victims' rights in the military justice system.

2.14.2.2. Protection orders and expedited transfers.

2.14.2.3. Confidentiality and privilege and how those concepts apply or do not apply to communications between a domestic violence or sexual assault victim and relevant personnel (VWAP, trial counsel, legal assistance, VC, etc.).

2.14.2.4. VWAP responsibilities to witnesses.

2.14.2.5. Victim compensation, restitution, and claims.

2.14.2.6. Clemency, punishments, and confinement.

2.14.2.7. VWAP resources to assist in management and execution of the program.

2.14.2.8. The military justice process.

2.14.3. SVIP Capability. VWAP Coordinators must receive training on implementation of the SVIP capability and their role in the program. See DAFI 51-201. Such training may be accomplished locally or through the VWAP Symposium.

2.14.4. Victim Rights, Notifications, and Responsibilities. VWAP Coordinators must receive training on rights, notifications, and responsibilities to victims, as prescribed by federal law, DoW and DAF policy. See **Chapter 5**. Such training may be accomplished locally or through the VWAP Symposium.

2.15. Annual VWAP Reporting Requirements.

2.15.1. Overview. TJAG submits an annual report using the DD Form 2706, *Annual Report on Victim and Witness Assistance*, to the Under Secretary of Defense for Personnel and Readiness. The report is submitted by 15 March for the preceding calendar year quantifying

the assistance provided to victims and witnesses of crime as measured by distribution of the DD Forms 2701 through 2705. **(T-0)**

2.15.2. Data Collection. After the conclusion of each calendar year:

2.15.2.1. The law enforcement and investigative personnel will record and report to the installation SJA or equivalent the number of DD Forms 2701 distributed for the preceding calendar year. **(T-0)**

2.15.2.2. In accordance with DoDI 1030.02, section 3.7, the installation SJA or equivalent will consolidate the reports compiled by DAF law enforcement, investigative, and VWAP personnel at that installation and report via the DD Form 2706 the information listed below through functional channels to the Major Commands (MAJCOMs), Field Commands (FLDCOMs), or equivalent. The report calls for data with respect to the SVIP function, the number of prisoners who require victim and witness notifications, and the number of victims and witnesses who:

2.15.2.2.1. Received a DD Form 2701 from law enforcement or criminal investigative personnel or from agencies which are part of the VWAP council;

2.15.2.2.2. Received a DD Form 2702, *Court-Martial Information for Victims and Witnesses of Crime*, from the government trial counsel or designee;

2.15.2.2.3. Received a DD Form 2703, *Post-Trial Information for Victims and Witnesses of Crime*, from the government trial counsel or designee; and

2.15.2.2.4. Elected via the DD Form 2704, *Victim/Witness Certification and Election Concerning Prisoner Status*, to be notified of changes in confinee status.

2.15.2.2.5. Confirmed via the DD Form 2704-1, *Victim Election of Post-Trial and Appellate Rights*, their post-trial and/or appellate rights.

2.15.2.2.6. Were sent notices of crime status changes via DD Form 2705, *Notification to Victim/Witness of Prisoner Status*.

2.15.2.3. MAJCOMs, FLDCOMs, field operating agencies, and direct reporting units (DRUs) consolidate the reports and forward a consolidated DD Form 2706 to JAJM to arrive no later than 15 February of each year.

2.15.2.4. Each confinement facility reports the information listed below to the Central Repository, Headquarters Air Force Security Forces Confinement and Corrections Directorate (AFSFC/FC). AFSFC/FC forwards a consolidated report to JAJM to arrive no later than 15 February of each year. The report includes the following:

2.15.2.4.1. The number of victims and witnesses who were notified by confinement facility VWAP Coordinators, via the DD Form 2705, of changes in confinee status.

2.15.2.4.2. The cumulative number of confinees for whom victim or witness notifications must be made by each confinement facility. This number is obtained by totaling the number of confinees with victim or witness notification requirements as of 1 July 1995, adding the number of new confinees with the requirement, and subtracting the number of those confinees who were released, died, or were transferred to another facility (federal, state, or Sister Service) during the reporting year.

2.15.2.5. Victim Demographic Data Reporting. VWAP personnel are required to request all victims of offenses for any case opened in DCMS to provide demographic data in accordance with the victim demographic data questionnaire located on the VMJD. The SJA is responsible for ensuring the victims' self-reported data is promptly entered into DCMS. The DAF relies on self-reported data; do not obtain this data via observation or other means.

2.15.3. Preparation of the DD Form 2706. JAJM consolidates the data from the MAJCOMs, FLDCOMs, FOAs, DRUs, and AFSFC/FC, on a DD Form 2706 and then forwards that form to TJAG.

Section 2B—VWAP Services

2.16. General VWAP Services.

2.16.1. Primary Point of Contact. VWAP personnel serve as the primary points of contact for eligible victims and witnesses to ensure they are informed of and referred to all available legal resources, unless the case involves an Investigation and Prosecution Support Team (IPST). This begins as soon as a victim or witness makes contact with the legal system, either directly or via referral from an outside agency. VWAP personnel are responsible for ensuring victims are notified at the earliest possible opportunity of rights afforded under Article 6b, UCMJ, DoDI 1030.02, and other rules as outlined in the R.C.M. When an IPST is involved, the IPST Special Trial Counsel (STC) is the victim's primary point of contact, unless the IPST STC determines certain VWAP personnel should be the point of contact for the victim. The IPST STC may elect to divide these duties with VWAP personnel, as well.

2.16.2. Victim/Witness Intake and Eligibility Assessment. Intake is typically conducted by the VWAP Coordinator or VWL at the earliest opportunity. The VWAP Coordinator or VWL assesses the victim's or witness's eligibility for services, including the additional VWAP services afforded to victims of certain sexual offenses and certain domestic violence offenses, as discussed in paragraphs **2.17**, **2.18** and **6.3**. The VWAP Coordinator or VWL will assess eligibility for services from other DAF, DoW and non-military agencies. This includes notification that the victim is eligible for legal assistance or VC services as soon as eligibility is assessed. After intake, if provision of VWAP services is appropriate for the victim or witness, the VWAP Coordinator assigns a VWL to the victim or witness. The VWAP Coordinator may designate an appropriately trained VWL from another legal office to a particular victim or witness, with the concurrence of the applicable SJA. If a victim is represented by counsel prior to contact with VWAP personnel, the VWAP Coordinator must contact the VC to arrange an initial meeting and discuss provision of information and services to the victim. See **paragraph 2.21.2**.

2.16.3. Scope of Relationship. VWAP personnel must notify the victim prior to intake and eligibility assessment that the VWAP Coordinator/VWL may not enter into an attorney-client relationship with the victim, and that their communications are not privileged or confidential and may be subject to disclosure to trial counsel, defense counsel, or law enforcement personnel. VWAP personnel must explain their disclosure obligations and provide the victim contact information, if requested, for appropriate personnel with whom the victim can have privileged conversations.

2.16.4. Regular and Continuous Contact with Victims. VWAP personnel will attempt to maintain regular and continuous contact with victims until all requested services or referrals are complete, all active criminal or administrative investigations or adjudications into the alleged offense are concluded with final disposition, or the victim specifically declines VWAP services. See **paragraph 2.21.2** for guidance on contact with represented victims. Additional guidance and templates for victim contacts are available on the VMJD.

2.16.5. Referrals for DAF Legal Services.

2.16.5.1. VC Representation. If an eligible victim requests VC representation, VWAP personnel will complete a referral form and forward it to the VP in accordance with **paragraph 3.10.3**. This includes requests submitted via the extraordinary circumstances request (ECR) process discussed in **paragraph 3.2.4**. If the VP determines the victim is ineligible for VC services, the victim will be referred back to VWAP personnel. If it is unclear whether a victim is eligible for VC services or not, see **paragraph 2.21.1.1**.

2.16.5.2. Legal Assistance Services. If the victim is eligible for legal assistance services and wishes to engage with a legal assistance attorney, VWAP personnel will promptly work to make the victim an appointment with a legal assistance attorney. VWAP personnel must ensure the legal assistance attorney is not conflicted out of representation, note whether the individual has questions regarding civilian or military protection orders, and request the individual receive scheduling priority. If applicable, VWAP personnel will provide the victim with the time and location of the appointment and standardized information on preparing for the appointment.

2.16.5.3. If a victim is eligible for both VC and legal assistance services and wishes to engage with both a VC and legal assistance attorney, VWAP personnel will accomplish both referrals required by paragraphs **3.10.3** and **2.16.5.2**.

2.16.5.4. VWAP personnel will provide active duty victims who are not eligible for a VC general information on the availability of an Area Defense Counsel (ADC) to advise on collateral misconduct or other similar matters. If a victim who is not eligible for a VC qualifies for ADC services and expresses concerns that could be addressed by an ADC, VWAP personnel will refer the victim to an ADC office. For victims who are eligible for VC services, the VC/VP will make any necessary ADC referral.

2.16.6. Referral for Non-DAF Legal Services. For victims who are ineligible for a legal assistance attorney, VC, or an ADC; who decline such assistance; or who require assistance outside the scope of those programs, VWAP personnel will:

2.16.6.1. Upon request of an eligible victim, request the SJA assign a legal assistance attorney to perform an American Bar Association (ABA) Military Pro Bono referral or to refer the case to a local or national pro bono program, as appropriate (see the “Referrals, Pro Bono Services & Expanded Legal Assistance Program (ELAP)” section on the legal assistance Knowledge Management site); or

2.16.6.2. If appropriate, provide comprehensive information on local low-cost or pro bono legal services entities when the victim is ineligible for an ABA Military Pro Bono referral or the referral request is denied. These services may not be available in all localities. VWAP Coordinators should familiarize themselves with local resources of this type.

2.16.7. Referral for Non-Legal Services. VWAP personnel shall refer victims and witnesses to other available, non-legal resources available to meet their needs, such as the MFRC; FAP; the Chaplain; and/or civilian resources. VWAP Coordinators should be familiar with these local services and have established relationships with local points of contact.

2.17. Additional VWAP Services for and Requirements Related to Victims of Domestic Violence.

2.17.1. Provide local area-specific information regarding services that may be needed by victims of domestic violence. This may include information about domestic violence shelters, low-cost housing, job training, and other state or non-governmental entity social services.

2.17.2. At installations with no DAF FAP or for other cases not within the purview of FAP or SARC, VWAP personnel will assist eligible victims of domestic violence with expedited transfer and/or humanitarian requests in accordance with **Section 2D**. VWAP personnel will inform domestic violence victims not eligible for expedited transfers of any other potential humanitarian permanent change of station (PCS) or transfer options and assist the victims with preparing the request.

2.17.3. VWAP personnel will process referrals for eligible victims of domestic violence to the VC in accordance with **paragraph 3.10.3**. VWAP personnel will work closely with VPs and VCs to ensure potential safety concerns are promptly addressed and victim assistance needs outside the scope of VC services are addressed to the extent possible.

2.18. Additional VWAP Services for Victims of Qualifying Sexual Offenses. VWAP personnel will assist eligible victims of stalking or other sexual misconduct offenses that are not within the purview of the SARC (e.g., indecent viewing, visual recording or broadcasting; forcible pandering; indecent exposure; wrongful broadcast or distribution of intimate visual images) with expedited transfer requests in accordance with **Section 2D**.

Section 2C—Relationship Between VWAP and Other DAF Programs

2.19. General Provision. The VWAP, SAPR program, and FAP are distinct but complementary programs providing support and services to victims as required by their governing directives. The LRO, or other officials appointed in this chapter, and the SARC, VA, and FAP personnel must work in concert to discharge their individual responsibilities and provide victims appropriate information on available options and resources, notice of relevant events in the investigative and judicial processes, and support. The LRO, or any other official appointed in this chapter, remains responsible for the delivery of VWAP services.

2.20. VWAP Coordination with Local Civilian Agencies. LROs are encouraged to consider agreements with local civilian agencies to ensure cooperative relationships in identifying and providing services and treatment to victims and witnesses. At an installation without a DoW-employed sexual assault nurse examiner available on short notice, it may be particularly important to have an existing agreement with a local civilian medical provider or institution which can offer such services. LROs must consult with their servicing SJAs before entering into any such agreements with local civilian agencies.

2.21. VWAP Coordination with Unrepresented and Represented Victims.

2.21.1. Unrepresented Victims.

2.21.1.1. During intake, there may be circumstances when it is unclear whether a victim is eligible for VC services. In such cases, VWAP personnel must ensure the victim makes contact with the VP instead of conducting the intake themselves. These cases will largely be cases where:

2.21.1.1.1. It is unclear which entity (VC or legal assistance) can best address the victim's legal needs.

2.21.1.1.2. A victim wishes to make an Extraordinary Circumstances Request (ECR) for a VC, and confidential communications are desirable to facilitate this request.

2.21.1.2. This hand-off ensures the victim may confidentially describe their legal needs for the purpose of requesting an attorney's services.

2.21.2. Represented Victims.

2.21.2.1. The VWAP plays a critical role in supporting the victim even after a VC is detailed or a civilian victim counsel is retained. For instance, the assigned VC may not always be assigned to the local installation and may rely on the VWAP for assistance in providing the victim information regarding local resources. Moreover, it is the responsibility of VWAP personnel to ensure the victim is receiving the appropriate and required information and notifications regarding his or her case.

2.21.2.2. Once notified the attorney-client relationship has formed between VC and a victim, VWAP personnel will not directly contact a victim without written permission from the VC.

2.21.2.3. For clients within the purview of VWAP, VCs will provide a notice of representation to the applicable VWAP and include in the notice the permissible scope of direct contact with the client, in accordance with **paragraph 3.19.2**. **Note**: VWAP personnel may request a similar document outlining responsibilities and contact preferences from any civilian VC retained by a victim. The permissible scope of contact shall specify whether the VWL or VWAP personnel are permitted to directly contact the represented victim to update the victim on case status and available services. If such contact is permitted, the VC and VP shall be copied on any correspondence.

2.21.2.4. If a victim is represented by counsel, required notifications or coordination with the victim shall be made through the VC subject to the permissible scope of contact outlined in **paragraph 2.21.2.3**. VWAP personnel always remain responsible for required notifications, services, and consultations, either directly to the victim or to the VC or other representative. VWAP personnel remain responsible for maintaining VWAP records related to notification to victims and VC.

2.22. VWAP Notifications to FAP, SARC, and Law Enforcement.

2.22.1. If VWAP personnel become aware of an allegation of domestic violence that has not yet been referred to the FAP or law enforcement, VWAP personnel will notify both entities as soon as possible after consultation with the SJA. VWAP personnel will inform all potential victims who contact them directly of the VWAP personnel's obligation to perform this notification. When possible, VWAP personnel will ensure the victim makes contact with FAP personnel.

2.22.2. If VWAP personnel become aware of an allegation of a qualifying sexual offense, as defined in **paragraph 3.2.2.1**, that has not yet been referred to the SARC or FAP, whichever is applicable, or law enforcement, the VWAP personnel will notify the appropriate entity after consultation with the SJA. VWAP personnel will inform all potential victims who contact VWAP personnel directly of VWAP personnel's obligation to perform this notification. When possible, VWAP personnel will ensure the victim receives correct contact information for FAP or SARC personnel and that direct contact is offered and provided.

2.22.3. If VWAP personnel become aware of other criminal allegations not contemplated in paragraphs **2.22.1**–**2.22.2** above, VWAP personnel will consult with the SJA to accomplish appropriate notifications to law enforcement or other agencies.

Section 2D—Expedited Transfers and Other Transfer Requests

2.23. VWAP Responsibilities. In cases where an expedited transfer or humanitarian request related to an allegation of sexual assault or domestic violence does not fall within the scope of the SAPR program or FAP, VWAP Coordinators process the expedited transfer request. Such requests may include, but are not limited to, the following scenarios:

2.23.1. Service members who are victims of stalking or other sexual misconduct offenses (e.g., indecent viewing, visual recording or broadcasting; forcible pandering; indecent exposure; wrongful broadcast or distribution of intimate visual images);

2.23.2. Service members who are victims of domestic violence but do not fall within the purview of the FAP; or

2.23.3. A Service member whose dependent was sexually assaulted by another Service member to whom the victim is not related.

2.24. Other Transfer Requests. Where applicable, VWAP personnel will inform victims (or their parents or guardians, in the case of minor incompetent victims) not eligible for expedited transfers of any other potential humanitarian PCS (e.g., humanitarian assignment, early return of dependents, dependent PCS in conjunction with a qualifying court-martial conviction, or administrative discharges) or transfer options and assist them in requesting such a transfer. See DAFI 36-2110; DAFI 36-3012, *Military Entitlements*.

Chapter 3

THE VICTIMS' COUNSEL PROGRAM

Section 3A—Administration of the Victims' Counsel Program

3.1. General Provision. The VC program is a distinct program designed to provide representation to eligible members of the DAF during the investigative, military justice, and disciplinary process, or as otherwise authorized by law or regulation. **Note:** Scope of representation is further explained in **paragraph 3.5**.

3.2. Access to the VC Program.

3.2.1. Eligible crime victims may request specialized legal assistance and representation as provided by the VC program. Eligibility turns on three factors—type of offense, victim status, and subject status—in accordance with paragraphs **3.2.2**–**3.2.3**.

3.2.2. VCs are authorized to provide services to victims of qualifying sex-related offenses, domestic violence offenses, and other offenses that contain elements of interpersonal violence, including but not limited to, workplace violence, under the UCMJ.

3.2.2.1. Qualifying sex-related offenses include violations of the following offenses:

3.2.2.1.1. Article 120, Rape and sexual assault generally;

3.2.2.1.2. Article 120b, Rape and sexual assault of a child;

3.2.2.1.3. Article 120c, Other sexual misconduct;

3.2.2.1.4. Article 130, Stalking;

3.2.2.1.5. Attempts, under Article 80, of those articles listed in paragraphs **3.2.2.1.1**–**3.2.2.1.4**; and

3.2.2.1.6. Article 117a, Wrongful broadcast or distribution of intimate visual images, provided the following criteria are met:

3.2.2.1.6.1. The victim is eligible for VC services under 10 U.S.C. § 1044e (a)(2)(A) or (a)(2)(B);

3.2.2.1.6.2. The victim has reported the offense to a Military Criminal Investigative Organization (MCIO);

3.2.2.1.6.3. The offender was subject to the UCMJ at the time the offense was committed;

3.2.2.1.6.4. The offender was subject to the UCMJ at the time the offense was reported; and

3.2.2.1.6.5. The DAF has jurisdiction over the offense.

3.2.2.2. Qualifying crimes of domestic violence include violations of the following offenses, provided the victim of the offense is a spouse, intimate partner, dating partner, or immediate family member:

3.2.2.2.1. Article 117a;

3.2.2.2.2. Article 118, Murder (attempted);

3.2.2.2.3. Article 119, Manslaughter (attempted);

3.2.2.2.4. Article 128(b), Aggravated Assault;

3.2.2.2.5. Article 128a, Maiming;

3.2.2.2.6. Article 128b, Domestic Violence, but only offenses that constitute violations of Article 128b.a(1); 128b.a(4); or 128b.a(5);

3.2.2.2.7. Article 130;

3.2.2.2.8. Attempts of the offenses listed in paragraphs **3.2.2.2.1** and **3.2.2.2.4**–**3.2.2.2.7**; or

3.2.2.2.9. Any offenses that constitute violations of Articles 119a, 122, and 126, along with any other offense that has an element that includes the use, attempted use, or threatened use of physical force against the person or property of a spouse, intimate partner or immediate family member, to include animals, will be considered on a case-by-case basis. A violation of any other provision of the UCMJ when committed against a spouse, intimate partner, or immediate family member may be considered by FOA/JAJS on a case-by-case basis as an ECR.

3.2.2.3. Eligible victims include:

3.2.2.3.1. RegAF, USAFA Cadets, ROTC cadets who are serving on federal active duty under Title 10 orders, or Space Force members, if the qualifying offense occurred while the victim was on active duty or eligible for legal assistance services IAW 10 U.S.C. § 1044, *Legal assistance* (i.e., the offense was not pre-service).

3.2.2.3.1.1. Limited scope consultations are authorized for RegAF or Space Force members in order to decline participation in an MCIO investigation for a qualifying offense that occurred pre-service.

3.2.2.3.1.2. Full scope representation for pre-service offenses is authorized for RegAF or Space Force members if the alleged perpetrator of a qualifying offense was subject to the UCMJ at the time of the offense and is currently subject to the UCMJ.

3.2.2.3.2. Air Reserve Component personnel if the circumstances of the qualifying offense have a nexus to the victim's military service. Air National Guard personnel, regardless of Title 10 status, are normally referred to the National Guard VC Program. VC Offices receiving referrals for ANG personnel will forward the request to the Deputy Chief, FOA/JAJS.

3.2.2.3.3. Others who are eligible for military legal assistance services IAW 10 U.S.C. § 1044 if the alleged perpetrator of a qualifying offense was subject to the UCMJ at the time of the offense and is currently subject to the UCMJ.

3.2.2.3.4. DAF and DoW Civilian Employees not eligible for military legal assistance services IAW 10 U.S.C. § 1044, provided: the civilian employee reports he or she is a victim of a qualifying sex-related offense committed by a military member subject to

the UCMJ; the DAF has jurisdiction to prosecute the offense; and there is a nexus to the victim's employment with the DAF or other military service.

3.2.2.3.5. All members otherwise eligible for VC services under this regulation provided that:

3.2.2.3.5.1. The victim alleges they were involved in an unprofessional relationship, as defined by Air Education and Training Command (AETC) Supplement 36-2909 (AFI 36-2909_AETCSUP), *Air Force Professional Relationships and Conduct*, that involves sexual conduct with basic military training or technical training faculty or staff.

3.2.2.4. Eligible members and dependents from other Military Services. Anyone eligible for a VC or Victims' Legal Counsel (VLC) from another Service (members, their dependents, those entitled to retired or retainer pay, or civilians deployed OCONUS) will be referred to their respective Service branch's VC or VLC Program for representation. An Air Force VC may be detailed if the other Service is unable to provide representation. The Chief, JAJS, or designee, after notification of the request for representation, will coordinate the detailing of a VC/VLC with the program managers of the other Service.

3.2.3. VC services are subject to availability of staff resources and capabilities when not contrary to statute or regulation.

3.2.4. Extraordinary Circumstances Requests (ECR).

3.2.4.1. General Provision. Pursuant to the authority granted by 10 U.S.C. § 1044e, and DAFPD 51-2, TJAG, through JAJS, promulgates the ECR process to grant VC representation to individuals who are not statutorily eligible for representation under 10 U.S.C. §§ 1044, 1044e, 1565b, or Pub. L. 116-92, 20 Dec. 2019 (known as the National Defense Authorization Act for Fiscal Year 2020), § 548. No substantive or procedural rights are created by the procedures established herein, discretion exercised on allocating Division personnel or resources, or JAJS internal procedures or guidelines.

3.2.4.2. Eligibility for ECR. The ECR process authorizes exceptions to eligibility requirements when: (1) the alleged perpetrator was subject to the UCMJ at the time of the offense; (2) the alleged perpetrator was subject to the UCMJ at the time of the ECR; and (3) the ECR is warranted for good cause and furtherance of the DAF mission. This authority includes, but is not limited to, detailing VCs, on a case-by-case basis, to represent:

3.2.4.2.1. Victims of sex-related crimes, domestic violence crimes, or crimes involving interpersonal violence, regardless of eligibility for legal assistance services under 10 U.S.C. § 1044; and

3.2.4.2.2. Victims of other violent crimes under the UCMJ, regardless of eligibility for legal assistance services under 10 U.S.C. § 1044.

3.2.4.3. Factors. There is no one particular factor or set of factors that determines whether an ECR is granted or denied. Each case must be evaluated on a case-by-case basis, given the unique facts presented, and a determination must be made that a VC is required because no other victims' service is able to meet the legal needs of the particular victim. The following threshold factors must be considered when submitting a victim's request for VC representation when the victim is not otherwise eligible for services. It is important to note

that these threshold considerations are informative, but not dispositive, in the determination to approve or deny an ECR.

3.2.4.3.1. The individual is a victim of a qualifying sex-related offense (in accordance with 10 U.S.C. § 1044e) or, beginning 1 December 2020, domestic violence offense (in accordance with Pub. L. 116-92, § 548(g) and this instruction), or a crime involving interpersonal violence;

3.2.4.3.2. The alleged perpetrator was subject to the UCMJ at the time of the offense and is subject to the UCMJ at the time of the request;

3.2.4.3.3. The victim will have an ongoing participation in a DAF investigation or the military justice process;

3.2.4.3.4. The type of service requested is directly related to the MCIO's investigation or UCMJ action resulting from the victim's crime report, and the requested service may only be provided by a VC; and

3.2.4.3.5. Granting the request is consistent with JAJS guidance.

3.2.4.4. Victims of other offenses may be considered for VC services on a case-by-case basis consistent with the threshold factors above.

3.2.4.5. The Chief, JAJS, Deputy Chief, JAJS, or Chief District Victims Counsel (CDVC), after notification of the request for representation, will determine whether an ECR will be granted and, if so, detail a VC.

3.3. Minimum Qualifications for Victims' Counsel and Paralegals.

3.3.1. Victims' Counsel. VCs must satisfy the requirements of 10 U.S.C. § 1044e(d) to be designated as a VC by TJAG. **(T-0)**

3.3.1.1. Recommendation. Judge advocates must be recommended for the VC position by their current SJA or equivalent through the Professional Development Directorate (AF/JAX) nomination process. SJAs should consider the unique characteristics necessary to provide victim services, which include, but are not limited to, military justice and discipline (particularly court-martial) and legal assistance experience, independence, competence, creativity, personality, and leadership qualities.

3.3.1.2. Designation and Certification. TJAG may designate and certify JAGs and DAF civilian attorneys as competent to perform the duties of a CDVC or VC if the following conditions are met:

3.3.1.2.1. The CDVC or VC has been certified by TJAG under Article 27(b), UCMJ; and

3.3.1.2.2. The CDVC or VC has successfully completed a DoW VC certification course. The VC certification course must comply with all guidance promulgated by the DoW regarding VC training requirements. **(T-0)**

3.3.1.3. Removal of Designation and Certification or Reassignment Due to Improper Qualifications. If the Chief, JAJS, determines a VC does not have the proper qualifications or disposition required to be a VC, the Chief shall take appropriate action, in coordination

with AF/JAX, to remove the individual from the VC course, recommend decertification as a VC, and/or take appropriate steps to reassign the individual, whichever is/are applicable.

3.3.1.4. Local Jurisdiction Training. Upon the assignment of a VC to a military installation in the United States, the VC shall complete training on the law and policies of the state or states in which the VC is assigned with respect to state criminal justice matters. **(T-0)**

3.3.1.4.1. The state-specific training must generally cover the following matters:

3.3.1.4.1.1. Victim's rights laws; **(T-0)**

3.3.1.4.1.2. Prosecution of criminal offenses; **(T-0)**

3.3.1.4.1.3. Sentencing for conviction of criminal offenses; and **(T-0)**

3.3.1.4.1.4. Civilian protective orders. **(T-0)**

3.3.1.4.2. This training must be completed prior to or within 30 days of in-processing at the military installation.

3.3.1.4.3. VCs use this training to advise clients as to applicable jurisdictions in which offenses are prosecutable and assist them in making applicable decisions on jurisdiction preference. See DAFI 51-201.

3.3.1.5. Supervisory Review of Local Jurisdiction Training. CDVCs must confirm each VC within their District has completed the required state(s) specific training, and report completion dates to JAJS within 90 calendar days of new personnel in-processing to the division. Additionally, CDVCs must report annual completion of training requirements by all VCs, and periodic review of any additional training materials by all VCs as established by the Chief, or the Deputy Chief.

3.3.1.6. Domestic Violence Training. VCs must receive specialized training in legal issues commonly associated with alleged domestic violence offenses. **(T-0)** The training must be conducted in accordance with DoW policy and approved by JAJS.

3.3.2. Victims' Paralegals (VPs).

3.3.2.1. Recommendation. VPs must be recommended for the VP position by their current SJA or equivalent through the special duty category nomination process. SJAs and/or legal office superintendents must consider the unique characteristics necessary to provide victim services, which include, but are not limited to, military justice and discipline and legal assistance experience, independence, competence, creativity, and leadership qualities.

3.3.2.2. Qualifications. VPs are special duty category positions. Volunteers and non-volunteers must meet certain criteria. At a minimum, VPs must:

3.3.2.2.1. Possess a 5-skill level;

3.3.2.2.2. Have a favorable recommendation from their current SJA;

3.3.2.2.3. Have 12 months of military justice experience;

3.3.2.2.4. Have the ability to run their own office without daily supervision; and

3.3.2.2.5. Successfully complete an approved VC certification course. The VC certification course must comply with the guidance promulgated by the DoW regarding VC and VP training requirements. **(T-0)**

3.3.2.3. Disqualification and/or Removal from Position. If the Chief, JAJS, determines a VP does not have the proper qualifications or disposition required to be a VP, the Chief shall take appropriate action, in coordination with the Paralegal Functional Assignments Manager, to remove the individual from the VC course, recommend decertification as a VP, and/or take appropriate steps to reassign the individual.

3.3.3. Professional Responsibilities and Rules. VCs must comply with the Air Force Rules of Professional Conduct (AFRPC) in accordance with AFI 51-110, *Professional Responsibility Program*, Attachment 2, and their state bar rules of professional conduct. **(T-0)** Due to the sensitive nature of their practice, VCs must exercise caution regarding extrajudicial statements (even though they are not a party to the proceeding). **(T-0)** Accordingly, VCs/VPs must adhere to the rules on publicity and social media as outlined in Rule 3.6 of the AFRPC. **(T-0)**

3.4. Case Management and Tracking. The VC Case Administration Tool (CAT) collects data pertaining to client services provided by VCs. CDVCs and VC Circuit Paralegal Managers shall ensure all subordinate attorneys and paralegals properly utilize the tool to track cases in accordance with established business rules. VCs are responsible for ensuring paralegals are adequately trained to input data and maintain case information in a timely manner. The contents of the CAT are privileged and exempt from release under the Freedom of Information Act (FOIA).

Section 3B—VC Representation and Services

3.5. Scope of Representation. The VC has an ethical obligation to advocate for the expressed interests of the client, even if in conflict with what the VC or a third party believes is in the best interests of the client. Provided a client's request is legal and ethical, a VC cannot substitute his or her own judgement for the expressed interests of any client.

3.5.1. Attorney-Client Relationship. VCs are legally authorized to enter into attorney-client relationships with eligible clients. **(T-0)** The VC's primary responsibility is to his or her client and the VC is bound by professional ethical responsibilities to the client.

3.5.2. Covered Services. VC legal representation and assistance related to the client's role in any military legal proceeding related to the qualifying offense(s) may include, but is not limited to:

3.5.2.1. Legal consultation and representation regarding military investigations, the military justice system, administrative hearings, and other proceedings where a victim can participate as a witness or other party;

3.5.2.2. Legal consultation regarding a victim's potential criminal liability stemming from or in relation to the circumstances surrounding an alleged offense and the victim's right to seek military defense counsel services, if authorized;

3.5.2.3. Legal consultation and assistance regarding the responsibilities, legal authorities, and support provided to the victim by VWAP personnel, FAP, or SAPR personnel;

3.5.2.4. Legal consultation and assistance regarding the availability and procurement of protections offered by civilian and military protective or restraining orders;

3.5.2.5. Legal consultation and assistance regarding the eligibility, requirements, and procurement of any available victims' compensation programs;

3.5.2.6. Legal consultation and assistance on other related matters that may arise outside of the military justice or administrative disciplinary process, such as expedited transfer requests, personal property claims, requests for the return of personal property, or as specified or permitted by 10 U.S.C. § 1044e, DoDI 1030.04, and other applicable law or regulation; and

3.5.2.7. Such other legal assistance as DoW or the SecAF may authorize.

3.5.3. Advocacy to Civilian Agencies and Representative Limitations. Within the limitations of the AFRPC and rules of applicable state(s), VCs may advocate a victim's interests to civilian prosecutors, law enforcement agencies, and other civilian and government agencies where there is a nexus to the client's status as a victim. VCs must exercise caution when advocating to civilian agencies to avoid any professional responsibility issues to include allegations of the unauthorized practice of law. VCs do not have the authority to represent a victim at any civilian proceedings without prior approval. **(T-0)** Representation of clients at civilian law enforcement interviews that are not joint investigations with a MCIO must comply with AFRPC and applicable state(s) professional responsibility rules, and the local jurisdiction's rules regarding non-licensed attorneys. Any requests to represent a client at a civilian proceeding must be vetted by the CDVC and approved by the Chief, JAJS.

3.6. Initiation of Attorney-Client Relationship and Scope of Representation (SOR) Letter.

3.6.1. An individual who is eligible for VC services becomes a client once he or she enters into an attorney-client relationship. **Note:** This may occur before or after the formal detailing of the VC and execution of the SOR letter.

3.6.2. VCs will execute SORs with their clients, explaining the areas in which they can provide legal representation and advice. The written SOR shall be executed immediately upon entering into an attorney-client relationship, or as soon as practicable thereafter. The SOR shall be tailored to each client and will comply with 10 U.S.C. § 1044e, Pub. L. 116-92 § 548, and this instruction.

3.6.3. The VC shall review and execute the SOR with the victim after establishing competency. Should the VC determine the victim to be incompetent to form an attorney-client relationship, the VC may review the SOR with the appointed Article 6b representative in their capacity as the holder of the victim's rights. **(T-0)** See **paragraph 3.7**.

3.6.3.1. If no Article 6b representative has been appointed at the time a finding of incompetency is made by the VC, the VC should petition the legal office to have an Article 6b representative appointed at the earliest possible time in order to facilitate representation of the victim. See **paragraph 3.7.2**.

3.6.3.2. When an SOR is executed with an Article 6b representative, in accordance with M.R.E. 502,the lawyer-client privilege applies to both the victim and the Article 6b representative in their capacity as the client's representative and holder of the victim's rights.

3.6.3.3. VC representation and lawyer-client privilege does not extend to the Article 6b representative in their individual capacity (i.e., as an independent witness in the case).

3.6.3.4. The VC's duty to determine competency is ongoing and, should the victim be determined competent at any time during the VC's representation, the VC will resume an ordinary attorney-client relationship with the victim. In accordance with M.R.E. 502, lawyer-client privilege, any privileged communication with the Article 6b representative in their capacity as an Article 6b representative shall remain privileged even if representation is later terminated.

3.6.4. When assistance is requested beyond the SOR, a VC shall consult with his or her CDVC and refer clients to appropriate resources. The SOR must detail the circumstances in which the attorney-client relationship will terminate, to include notice to the client of circumstances that could trigger unilateral termination, and that, absent direction otherwise by the client, the VC will notify the legal office or other relevant entities of termination or transfer of representation.

3.7. Representation of Minors and Clients with Diminished Capacity.

3.7.1. General Provision. Pursuant to the AFRPC, when a client's capacity is diminished due to age, mental impairment, or some other reason, VCs maintain a normal attorney-client relationship with the client to the extent possible. Therefore, the VC has a continuing duty to evaluate the decision-making capacity of his or her client so representation may be adjusted accordingly. If the VC determines the client lacks capacity to make adequately considered decisions in connection with the representation, the VC may formally request an Article 6b representative be appointed at the earliest possible time to direct representation. See DAFI 51-201, paragraph 7.7 for appropriate appointment procedures. VCs must comply with professional responsibility rules regarding confidentiality when representing clients with diminished capacity.

3.7.1.1. Representatives Under Article 6b, UCMJ. Upon formal request by a VC for the appointment of an Article 6b representative, the legal office shall work to expeditiously have an Article 6b representative appointed to facilitate VC representation. See DAFI 51-101, paragraph 7.7 for appointment procedures. In the event a legal office does not act on such a request, a VC may explore or request the appointment of a representative under Article 6b, as required, or a convening authority-appointed representative. Consideration of any such action shall be coordinated with the VC's CDVC.

3.7.1.2. Children 3 Years of Age and Younger. Children ages 3 and under are presumed to have diminished capacity, and an Article 6b representative should be appointed upon identification of the victim and prior to referring to VC.

3.7.1.3. Children 16 Years of Age and Older. Victims 16 years of age and older are presumed to have the capacity to independently direct their own representation. **(T-0)**

3.7.1.4. Children Under 16 Years of Age, But Older Than 3 Years of Age. Prior to initiating the attorney-client relationship and reviewing the SOR letter with any child victim under the age of 16, the VC will act in conformity with the AFRPC to determine whether the victim has sufficiently diminished capacity that prevents the victim entirely from being competent to enter into an attorney-client relationship. **(T-0)**

3.7.1.4.1. There is no presumption that a child under 16 years of age but older than 3 years of age has diminished capacity.

3.7.1.4.2. Capacity may fluctuate depending on the child's circumstances. A child may be able to determine some positions or direct representation on some aspects but not others. The VC will assess the child's competency throughout the term of the attorney-client relationship and will advise and advocate for the child client accordingly.

3.8. Limited Services for Victims Without Qualifying Reports. VC services for clients who have not yet made a report of sexual assault, domestic violence, or other qualifying offense are limited to explaining the available reporting options, methods, and services available under each reporting option.

3.9. Matters Outside the Scope of Representation. VCs shall not represent victims in civilian criminal or civil courts; civilian courts of delinquency; civilian family court; custody, neglect, or divorce matters; or in civilian school system or board matters. Any requests to represent a client at a civilian proceeding must be vetted by the CDVC and approved by the Chief, JAJS.

3.10. Obtaining VC Services.

3.10.1. Requirement to Advise Victims of Available VC Services. Eligible victims must be informed of the availability of VC services upon reporting a sexual assault, before being interviewed as a victim regarding a sexual assault allegation, or when seeking assistance as a victim related to an allegation of sexual assault from the DAF agencies/personnel listed immediately below in paragraphs **3.10.1.1**–**3.10.1.10**. See 10 U.S.C. § 1044e. Notification of eligibility must be made during the initial meeting. A request for VC services can be made by a parent or legal guardian of a child client or client with diminished capacity. Upon request for VC services, absent exigent circumstances, all victim interviews and evidence gathering from the victim shall cease until an eligible victim has a VC. See DoDI 5505.18. **Note:** Trial counsel must ensure qualifying victims have received an initial notification of VC availability from a qualifying party before trial counsel conducts an interview with the qualifying victim. See 10 U.S.C. § 1565b(a)(3). For guidance on ECR requests and general eligibility, see **paragraph 3.2.4**. The following agencies or individuals must inform eligible victims reporting a sexual assault of the availability of VC services:

3.10.1.1. SARC;

3.10.1.2. VA (SAPR or FAP, to include DAVAs);

3.10.1.3. FAP personnel;

3.10.1.4. AFOSI/SFS investigator or agent, upon victim report and/or before victim interview;

3.10.1.5. VWAP personnel;

3.10.1.6. Trial counsel;

3.10.1.7. Defense counsel;

3.10.1.8. Chaplain or chaplain's assistant;

3.10.1.9. Mental health provider; or

3.10.1.10. Medical provider.

3.10.2. Request for Services and Referrals. Victims may directly request VC services from the local VC office, or may submit a request for VC services through their chain of command or any of the agencies identified in paragraphs **3.10.1.1**–**3.10.1.10**.

3.10.3. Referral Process.

3.10.3.1. The individual making the referral completes the VC referral form, which is located on the VMJD. **Note:** Different forms exist for different referring agencies (e.g., SARC, VWAP personnel); however, the process for submission remains the same for each referral form.

3.10.3.2. Completed referral forms are submitted to the VP at the servicing VC office for processing. The Chief or Deputy Chief, FOA/JAJS, or CDVC details VCs to represent eligible victims.

3.10.3.3. Victim Determined Eligible for VC Services. If eligible, a victim will normally be assigned a VC within 72 hours of the referral. Once a VC is detailed, the VP will notify the VWAP Coordinator or other referring agency, and the VP will contact the victim directly.

3.10.3.4. Victim Determined Ineligible for VC Services. If a victim is determined to be ineligible for VC representation, the VP will notify the VWAP Coordinator or other referring agency, who will notify the victim. If the victim wishes to pursue an ECR, VWAP personnel or other referring agency will assist the victim with drafting and submitting the request in accordance with **paragraph 3.2.4**.

3.10.4. Effect of VC Services on Crime Reporting. Victims may be detailed VC representation regardless of whether they made a restricted report, unrestricted report, or no official report of being the victim of a qualifying offense. When no official report of a qualifying offense has been made, VC representation is limited in accordance with **paragraph 3.8**.

3.10.5. VC Availability and Accessibility.

3.10.5.1. Upon request for VC services by an eligible victim, a VC will be made available to consult with the victim within 72 hours.

3.10.5.2. If a member of the armed forces who is eligible for VC services under 10 U.S.C. § 1044e requests access to a VC at a military installation, and a VC is not available at that installation, a VC shall be made available in-person or by electronic means to the member no later than 72 hours after such request. **(T-0)** In situations where a VC cannot be made available in-person, the VC shall advise the individual about communication by electronic means and the limitations of in-person representation. The VC shall document the member's consent or lack thereof to electronic communication.

3.10.5.3. If the Chief, JAJS, or superior authority (e.g., the Director, JAJ, The Deputy Judge Advocate General, or TJAG), determines a VC cannot be made available to a member of the armed forces within 72 hours of the request for access due to exigent circumstances related to military activities, the Chief, JAJS, or higher authority, shall ensure a VC is made available to such member as soon as is practical under such circumstances. **(T-0)**

3.11. Termination or Declination of Services.

3.11.1. Attorney-client relationships within the VC Program are status-based and may extend for as long as a client is eligible and those services are reasonably needed by the client. Individuals who enter into an attorney-client relationship with a VC remain eligible for VC assistance, limited to matters directly related to the investigation, prosecution and/or disposition of the alleged qualifying offense, even if they otherwise lose their eligibility for legal assistance. Such assistance terminates as specified in the SOR letter signed by the individual and the VC at the time representation commenced, consistent with the AFRPC and their state bar rules of professional conduct. VCs will provide written notice to the client of termination of the attorney-client relationship. **(T-0)** If a client has become unreachable or unavailable through normal means of contact, the VC shall make best efforts to notify the client of the termination of the relationship. **(T-0)**

3.11.2. Termination by Client.

3.11.2.1. VC services are optional and may be declined at any time by a victim and/or a client.

3.11.2.2. In cases where the client no longer desires VC representation, the client may release the VC from further representation. The VC shall request a written release, signed by the client. VCs may prepare a release for the client's signature. If the client refuses to sign a release after expressing the desire to release the VC, the VC will send the client a termination letter informing the client that the representation has been terminated according to the client's desire to withdraw. At a minimum, the VC shall retain a copy of the letter in the case file and document any other circumstances of the release.

3.11.3. Termination by the VC.

3.11.3.1. General Rule. Once the attorney-client relationship is established, the VC may only sever it at the request of the client or in accordance with the agreed upon SOR, the AFRPC, and this instruction, or IAW statute, regulation, or case law. The VC will execute a termination memorandum with the client after all matters reasonably relating to qualifying offenses are complete.

3.11.3.2. Termination Following a Restricted Report. Representation of a client with a restricted report will normally focus on advice and referral to support services, advice on reporting options to include the option to convert the report to an unrestricted report, and participation in the "Catch a Serial Offender" (CATCH) program. A VC may continue to represent a client until the client has utilized all available advocacy services related to the restricted report of a qualifying offense. **Note:** For guidance on the CATCH program, see DoDI 5505.18 and DAFI 90-6001.

3.11.3.3. Termination Following No Action Decision or Article 32 Preliminary Hearing. A VC shall continue to represent a client following a disposition decision of no action until no legal matters related to the offense remain.

3.11.3.4. Termination Following Conclusion of Court-Martial. A VC shall continue to represent a client in the court-martial process until the entry of judgment is complete. Requests for post-trial appellate representation may be made in accordance with **paragraph 3.15**.

3.11.3.5. Termination Following Nonjudicial Punishment or Other Administrative Action. In cases where an offense against the client is resolved by a commander's imposition of nonjudicial punishment, administrative separation proceedings, board of inquiry, or any other administrative means, a VC shall continue to represent the victim's interests and assert any applicable victim's rights at such proceedings until the relevant process is complete.

3.11.4. Transfer of Services.

3.11.4.1. Transfer of counsel due to a client's deployment, expedited transfer, permanent change of station or other circumstances may be approved through the appropriate CDVC or the Chief, JAJS, when requested by the victim. **(T-0)**

3.11.4.2. If the VC desires to withdraw from representing a client due to a transfer to another assignment the VC shall: (1) obtain approval from his or her own detailing CDVC and the CDVC who details the successor VC, and (2) obtain the client's consent in writing to terminate the attorney-client relationship or provide written notice of unilateral termination if the VC's new position is incompatible with continued representation.

3.11.4.3. Whether an assignment is incompatible with continued VC representation is determined by JAX.

3.11.4.4. If the VC is separating or retiring from the active duty force, the VC shall:

3.11.4.4.1. Inform his or her CDVC of his or her last duty day and request a new VC be detailed if the client desires continued representation; and

3.11.4.4.2. Notify the client the VC's representation will terminate upon the VC's separation or retirement in accordance with the SOR in writing. The withdrawing VC shall provide appropriate written notice of the withdrawal to appropriate persons.

3.11.4.5. Transfer of VC services is subject to availability of staff resources and capabilities.

3.12. Grounds for Continued Representation. A VC may continue to represent a client after the final disposition action related to the client's allegations if necessary to resolve legal issues related to the qualifying offense as authorized under 10 U.S.C. § 1044e or Pub. L. 116-92 § 548, such as personnel issues (e.g., petitions to the command or Board for Correction of Military Records to remove records of the client's collateral misconduct) or a request for an expedited transfer or other administrative matters (e.g., communications with Congress or an Inspector General, complaints of retaliation, submission of FOIA requests for AFOSI Reports of Investigation, and for transitional assistance applications). A VC will normally terminate representation within 30 calendar days of the client filing any administrative matter and/or communication with Congress or an Inspector General.

3.13. Client Requests for Continued Representation. A client or former client may request continued representation after termination of services by submitting a new request for VC representation. Such requests will be evaluated on a case-by-case basis.

3.14. Grounds for New Representation. If, after termination, the VC is made aware of a new legal issue or matter that relates back to the prior representation, the VC may contact the client in order to inform the client of the new matter. If the VC is no longer assigned to JAJS or has separated from active duty status in the Air Force, the Chief, JAJS, or appropriate CDVC may

detail a new counsel to contact the former client. The VC and former client shall then execute a new SOR letter to address the new matter.

3.15. Appellate VC (AVC) Program. AVC representation is distinct from VC representation.

3.15.1. Notification of AVC Representation. Following an accused's conviction related to the client's allegations that qualifies for an appeal, VCs will inform the client of the availability of appellate VC representation.

3.15.2. Scope of AVC Representation.

3.15.2.1. Eligible Victims. See paragraph **3.2.2.1**–**3.2.2.3** for eligibility criteria.

3.15.2.2. Qualifying Matters. At a VC client's or former VC client's request, AVCs may be assigned in cases where there are post-trial matters and/or trial level petitions for relief from adverse ruling or other events before a Service court of criminal appeals, the Court of Appeals for the Armed Forces, the Supreme Court of the United States, or the Air Force Clemency and Parole Board where the client, or former client, has a legal right related to the accused's conviction for an eligible offense under Articles 117a, 120, 120a, 120b, 120c, 128, 128b, 130 of the UCMJ or other qualifying domestic violence offense.

3.15.2.2.1. To qualify for an AVC, the accused's conviction for a qualifying offense must have resulted in a sentence of death, dismissal of a commissioned officer or cadet, dishonorable discharge or bad-conduct discharge, confinement for more than two years, or the offender must have filed notice of appeal, and the VC client or former VC client must have a legal right impacted by such conviction.

3.15.2.2.2. In cases where the accused appeals but does not have a sentence qualifying for automatic review, the victim may receive services if determined to otherwise qualify after AVC's review of the facts of the case and appellate record.

3.15.2.2.3. In cases where the client or former client seeks representation before the Air Force Clemency and Parole Board, the case must have resulted in a sentence that includes confinement of more than two years.

3.15.2.2.4. Petitions for Relief. A VC or AVC may file with an appellate court petitions for relief from adverse rulings or other events, as authorized by law or other authority. If practicable, the VC should consult with his or her CDVC and the appellate function within JAJS prior to filing any such petition with an appellate court. The VC must follow the applicable rules of court in filing any such petition.

3.15.2.2.5. Requests for exceptions to AVC qualification matters will be considered on a case- by-case basis. All requests must articulate the client or former client's right(s) impacted in the post-trial phase and the scope of services requested and must be processed in accordance with the ECR process in **paragraph 3.2.4**.

3.15.2.3. Absent exceptional circumstances as determined by the Chief, JAJS, or Deputy Chief, JAJS, the trial VC shall terminate his or her representation once the client is transferred to the AVC. The Chief or Deputy Chief, JAJS, may detail AVCs.

Section 3C—Access to DAF Information

3.16. Official Use Requests. In order to perform their official duties advising and representing clients pursuant to 10 U.S.C. § 1565b, 10 U.S.C. § 1044e, and Pub. L. 116-92 § 548, VCs and VPs will often need to review records within the control of the government to assist in the performance of their official duties. See DAFI 51-201 for processing guidance. **Note:** This is separate from the ability of a civilian attorney serving as VC to request and receive documents. See DAFI 51-201, and DoD 5400.11-R, *Department of Defense Privacy Program*, paragraph C4.2.1..

3.17. VC Duty to Protect Responsive Records. VCs receiving DAF records as "official use" requests have a duty to protect said records from unauthorized access or release. **(T-0)** A VC may discuss relevant information contained in released documents with his or her client to help the client understand the outcome of the trial or other proceeding, make case-related decisions, or otherwise assist the VC in performing their duties as they relate to the client. A VC shall not release any documents to his or her client, individuals outside of the DoW, or share the documents with other DoW personnel except for official duty purposes, without the express written approval of the releasing office.

3.18. Court Pleadings, Filings, and Other Court Documents. VCs may represent clients' legal interests in any UCMJ or administrative proceeding and shall receive copies of pleadings, motions, and other documents relating to those matters within a timely manner as Controlled Unclassified Information (CUI). **(T-0)** Where a victim is represented by a civilian victims' counsel or is not represented by counsel, the government trial counsel must notify any victims or witnesses of a motion or ruling affecting the victim or witness's rights or privileges, to include providing access to motions or documents where required by the R.C.M., the UCMJ, or other law or regulation, including where necessary to comply with Article 6b, UCMJ.

Section 3D—Relationship Between VC Program and Other DAF Programs.

3.19. VC Coordination with VWAP for Represented Victims.

3.19.1. VCs and VPs foster cooperation with the VWAP Coordinator to further the goals of victim support throughout the military justice process. VCs may provide information regarding VWAP to clients. The VC program is not a substitute for VWAP.

3.19.2. In cases with an ongoing military investigation or adjudication, once a VC forms an attorney-client relationship with a victim and the SOR is signed, the victim's VC must provide a notice of representation to the applicable VWAP personnel describing the general nature of the VC's representation and any circumstances where VWAP personnel or other personnel may contact the victim directly about the matter in which he or she is represented. Unless doing so would prejudice the interests of the client, the VC must notify VWAP personnel when representation ceases or when transfer of representation occurs. The VC will consult with the client on which communications the client wishes to receive directly from VWAP personnel or other legal office personnel. The VC will document the client's understanding of and consent to the VC's and client's communication arrangement with VWAP personnel.

3.19.3. VWAP and legal office personnel will not contact represented victims directly, unless written permission to do so is provided by the VC. For the duration of the VC representation, even when permitted to contact a client directly, VWAP personnel must courtesy copy the victim's VC on all communications and must notify the VC of any and all communication (to

include telephonic or in-person communications) VWAP personnel had with the client outside the presence of the VC. Once informed that representation has ceased, VWAP personnel may resume contacting the victim directly.

3.20. Local Legal Office. SJAs are responsible for providing support to the local VC and VP in accordance with DAFI 51-201.

Chapter 4

SEXUAL ASSAULT PREVENTION AND RESPONSE PROGRAM FIRST RESPONDER TRAINING FOR LEGAL PERSONNEL

4.1. Development of SAPR Program Training. JAJM develops and provides training to satisfy the annual requirement for SAPR program first responder training for specified legal personnel. See DoDI 6495.02, Volume 1, Enclosure 10, and DAFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program*. This annual training requirement is in addition to annual total force SAPR training requirements developed under the oversight of the Integrated Resilience Directorate (AF/A1Z). See DoDI 6495.02, Volume 1, Enclosure 10, and DAFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program*.

4.1.1. The training shall be submitted to AF/A1Z for coordination every two years. See DAFI 90-6001. **(T-1)**

4.1.2. Installation legal offices are required to augment the training with local policies and procedures with regards to local resources, referrals, and procedures for military and civilian victims. See DoDI 6495.02, Volume 1, Enclosure 10. **(T-0)** Legal offices have broad discretion in determining how to fulfill this requirement. For example, legal offices may meet this requirement by identifying on-installation resources such as the SARC, Family Advocacy, mental health providers, etc. Legal offices may also include information about off-installation resources such as local rape crisis centers, off-installation victim service organizations, victim advocacy organizations, and trauma centers equipped to provide care to crime victims.

4.2. Mandatory SAPR Training Requirement. SAPR Program First Responder training is mandatory for the following:

4.2.1. RegAF and ARC judge advocates who practice in military justice (including Article 32 Preliminary Hearing Officers (PHOs)), VWAP, or legal assistance (this may include VCs and defense counsel), who serve as trial counsel or advise commanders on military justice, or who advise criminal investigators on criminal investigative matters;

4.2.2. RegAF and ARC paralegals who provide military justice or legal assistance support or directly contribute to a VWAP;

4.2.3. Any civilian attorney whose core document or position description references, or who through assigned duties, directly contributes to, military justice, legal assistance, or a VWAP; and

4.2.4. Any other civilian personnel (including volunteers) assigned to a legal office whose core document or position description references, or who through assigned duties, contributes to criminal investigations, military justice, legal assistance, or a VWAP. **(T-0)**

4.3. SAPR Training Timeline. Training must be completed within 30 days of assuming a position or duties requiring the training as described above and annually thereafter. **(T-0)** There is no further requirement to repeat training prior to deployment if the individual will otherwise be compliant for annual requirements.

4.4. SAPR Training Compliance Tracking. AF/JAX is responsible for tracking compliance with the annual training requirement for legal personnel.

Chapter 5

RIGHTS, OBLIGATIONS, AND DUTIES TO VICTIMS AND WITNESSES

Section 5A—General Rights, Privileges and Services Afforded to Victims and Witnesses

5.1. Applicability. This chapter applies to cases involving crimes committed in violation of the UCMJ where any portion of the investigation, prosecution, or administrative action is conducted primarily by DoW components.

5.2. Obligation to Know Rights and Privileges. Trial counsel, VWAP personnel, law enforcement, investigative personnel, and commanders must be knowledgeable of their obligations and the rights and privileges of victims and witnesses in this instruction, 32 C.F.R. § 114, *Victim and Witness Assistance*, the MCM, the UCMJ, and DoW and DAF policy.

5.3. Rights and Privileges for Victims and Witnesses.

5.3.1. The UCMJ, R.C.M., M.R.E., DoW and DAF policy, and other applicable statutes and regulations afford certain rights and privileges to all individuals involved in the military justice process. A list of these rights and privileges with references can be found on the VMJD on the "Victim Resources" page, found in the "Victim Resources, Notices, and Engagement" Section. The applicable privileges found in the M.R.E. apply at all stages of the investigative and military justice process for victims, witnesses, and subjects or accused, subject to limitations contained within those privileges. It is DAF policy that privileges apply to all administrative processes. Victims' rights provided in Article 6b, UCMJ, shall be afforded to victims to the maximum extent practicable in all administrative proceedings.

5.3.2. Victims' Rights in Interviews.

5.3.2.1. Victims generally cannot be compelled to interview with trial or defense counsel. However, VWAP personnel, or VC, if applicable, may encourage them to do so, and take any possible steps to mitigate concerns associated with interviewing (for example, arrange for the interview to be in a place convenient for the victim).

5.3.2.2. A victim who is subject to a request for interview by defense counsel has the right to have any interview take place in the presence of trial counsel, VC, civilian counsel for the victim, as well as a victim advocate. **(T-0)**

5.3.2.3. If the victim requests trial counsel's presence, the trial counsel must inform the victim that the trial counsel's presence does not establish an attorney-client relationship.

5.3.2.4. At all defense counsel interviews of the victim attended by trial counsel, an additional person other than the trial counsel should be present (e.g., paralegal or VWL).

5.3.3. Incompetent, Incapacitated, Deceased, Underage, or Institutional Entity Victims.

5.3.3.1. In the case of a UCMJ offense, when a victim is incompetent, incapacitated, deceased, or under 18 years of age, a detailed military judge may designate a representative who may assume the victim's rights under the UCMJ. **(T-0)** See Article 6b; Article 30a(1)(D); R.C.M. 801(a)(6). The military judge-appointed representative may exercise any rights of the victim under this instruction, consistent with any applicable judicial order.

VWAP personnel and VC, if applicable, will fulfill their obligations to the victim through the representative (or, if applicable, counsel for the victim/victim's representative).

5.3.3.2. The convening authority may also appoint a representative for a victim, in accordance with DoDI 1030.02, when a representative has not been designated by a military judge or when the representative appointed by the military judge has not been given authority to exercise all of the victim's rights afforded by law, DoDI 1030.02, and this instruction. It is highly encouraged to complete this appointment prior to seeking victim input on disposition of the case under paragraphs **6.7** and **6.8**. Representation by a victim's counsel does not abrogate the need to seek appointment of a representative under Article 6b, UCMJ.

5.3.3.3. In the case of a victim that is an institutional entity, an authorized representative of the institutional entity may represent the institutional entity. Institutional entities include, but are not limited to, commercial and non-profit organizations, whether public or private. An institutional-entity victim would be afforded the same rights under this instruction as a person who is a victim of the same sort of crime. For example, if funds were stolen from the coffers of a spouse's club, an authorized representative may assume victim's rights on behalf of the club, and that representative would have the same rights and see the same notifications as an individual who had been robbed.

5.3.4. A victim has an absolute right to decline to testify in an administrative proceeding. See DAFMAN 51-507, *Enlisted Discharge Boards and Boards of Officers*.

Section 5B—General Services for Victims

5.4. Legal Assistance. The SJA or designee will inform victims eligible for legal assistance under AFI 51-304, *Legal Assistance, Notary, Preventative Law, and Tax Programs*, of legal assistance services in accordance with 10 U.S.C. § 1565b. See **paragraph 2.16.5.2**. All victims may also elect to seek the advice of a private attorney at their own expense.

5.5. Victims' Rights List. Victims of crime may have additional rights not discussed in this instruction that are contingent on the type of offense, the stage in the process, the status of the victim with respect to the military, and other factors. A list of victims' rights with references is available on the VMJD on the "Victim Resources" page, found in the "Victim Resources, Notices, and Engagement" Section.

5.6. Medical and Social Services.

5.6.1. The LRO or designee will inform victims, as appropriate, of available medical and social services and victim advocacy services for victims of domestic violence and sexual assault and, when necessary, assist in securing those services. **(T-0)**

5.6.2. The LRO or designee will provide, as appropriate, victims with the contact information (name, address and telephone) of the MFRC director (or, when applicable, the SARC and/or FAP).

5.6.3. In cases where referring a victim to the MFRC for information may potentially cause undue embarrassment for the victim, LROs or their designees are encouraged to provide VWAP information directly to the victim.

5.6.4. The LRO or designee will inform victims of available public and private counseling, treatment and support programs and, when necessary, assist in obtaining those services.

5.7. Restitution and Other Compensation.

5.7.1. The LRO or designee will inform victims of any restitution or other relief to which they may be entitled. Assist victims as appropriate in obtaining the relief or contacting those responsible for providing relief. **(T-0)**

5.7.2. The LRO or designee will inform victims that restitution may be available from, or offered by, an accused as a condition in the terms of a plea agreement, during the sentencing process as a part of post-trial mitigation (R.C.M. 1109), or as a term or condition of parole or clemency. **(T-0)**

5.7.3. The LRO or designee will inform victims of possible restitution and/or other forms of compensation from local, state, or federal crime victims' compensation funds, including procedures for applying for such funds. **(T-0)** When requesting jurisdiction input from victims of certain sex-related offenses (see DAFI 51-201), provide the victim information regarding restitution potentially available should the accused be convicted in a civilian criminal court.

5.7.4. The LRO or designee will inform victims that Article 139, UCMJ, may provide relief if the property loss or damage resulted from wrongful taking or willful damage by a member of the Armed Forces due to riotous, violent, or disorderly conduct. **(T-0)** Inform victims and witnesses whose property was taken as evidence of the potential to file a claim for their loss. See AFI 51-306, *Administrative Claims For and Against the Air Force*, Chapter 6. Ensure an Article 139 investigation does not interfere with any criminal investigation or court-martial proceedings.

5.7.5. Transitional Compensation. The LRO or designee will inform eligible victims of dependent-abuse offenses of the potential availability of limited transitional compensation benefits, commissary and exchange benefits, and lodging expenses. **(T-0)** See 10 U.S.C. § 1059, *Dependents of members separated for dependent abuse: transitional compensation; commissary and exchange benefits; lodging expenses*, DoDI 1342.24, *Transitional Compensation for Abused Dependents*, and DAFI 36-3012, Chapter 8.

5.8. Access to Information. In accordance with 5 U.S.C. § 552a (the Privacy Act), records and information related to military justice, magistrate court, Article 138, UCMJ complaints, and administrative disposition, including nonjudicial punishment and administrative discharge proceedings, may potentially be disclosed as a routine use to victims and witnesses where consistent with the requirements of the VWAP and Article 6b, UCMJ. See SORN DoD 0006; 5 U.S.C. § 552a(b)(3).

5.8.1. The decision to release information should consider narrowing any release to align with both program goals and privacy considerations. Redactions should be considered to protect otherwise non-releasable or private information.

5.8.2. When analyzing Privacy Act exceptions, consider the DAF's interest in fostering cooperation of victims and witnesses in the instant case, whether there have been any disclosures about the action or disposition that would diminish an expectation of privacy, and other relevant factors.

5.8.3. Because each case presents unique facts and circumstances, decisions to release information are reviewed on an individualized basis in light of the various authorities governing release of information, including, but not limited to, the Privacy Act and the Freedom of Information Act.

5.8.4. See **Section 3C** and DAFI 51-201 for release of information to VCs pursuant to an official use request.

5.8.5. Requests for information or documents beyond what SORN DoD 0006 or other applicable authority provide shall be processed in accordance with DoDM 5400.07-R_AFMAN 33-302, *Freedom of Information Act Program*, as FOIA/Privacy Act requests. **(T-0)** The SJA shall ensure prompt response to and processing of these requests, or—to the extent the SJA is not the release authority—promptly direct the requestor to the appropriate release authority.

5.9. Duty to Maintain and Return Personal Property. The SJA or designee shall work with the law enforcement evidence custodian to ensure any property of the victim held for evidentiary purposes is maintained in good condition and returned to the victim as soon as it is no longer needed or required to be retained by law. See **paragraph 5.12** for guidance when victims request earlier return of personal property.

5.10. Other Assistance.

5.10.1. In appropriate cases, and if requested by the victim, the SJA or designee will assist victims subjected to serious financial strain directly resulting from a crime, or cooperation in the investigation or prosecution of an offense, in explaining reasons for financial strains to creditors. However, this does not entitle non-eligible victims to formal legal assistance. See AFI 51-304.

5.10.2. If requested by the victim, the SJA or designee will take reasonable steps to inform the victim's commander, supervisor, or employer of the reasons for the victim's absence from the victim's duty section or workplace.

Section 5C—Additional Rights Available to Victims of Sexual Assault

5.11. Notification of Significant Events. All victims who make an unrestricted report of qualifying sexual offenses are entitled to notification of significant events in any investigation, prosecution, and confinement resulting from their allegation. See **Chapter 6** for further guidance.

5.12. Return of Personal Property in Certain Sexual Offense Cases. Sexual assault victims may request return of personal property in accordance with DoDI 5505.18 and DoDI 6495.02, Volume 1, Enclosure 8. **Note:** SJAs must timely coordinate with appropriate law enforcement to process the request in accordance with DoDI 5505.18.

Section 5D—Legal Privilege and Confidentiality Matters and Conflict Prevention

5.13. General Provision. Certain communications with victims and witnesses may be privileged. Legal practitioners, VWAP personnel, and MCIOs should be aware of these privileges.

5.13.1. FAP. FAP treatment providers' communications with victims, the accused, and witnesses, as well as related documentation, may be privileged under M.R.E. 513, depending

on the nature of the communications. DAVA communications with victims are generally privileged under M.R.E. 514.

5.13.1.1. Conflict Prevention. The SJA should defer any review or legal advice to FAP on release of FAP records involving a victim, accused, or other individual involved in an ongoing investigation to an attorney uninvolved with providing legal advice regarding the military justice matters at issue (i.e., a taint team or taint attorney).

5.13.2. SAPR. SAPR personnel communications with victims, even in cases of unrestricted reports of sexual assault, are generally privileged under M.R.E. 514.

Chapter 6

NOTIFICATIONS AND RESPONSIBILITIES TO VICTIMS AND WITNESSES

Section 6A—General Notifications and Responsibilities

6.1. Overview.

6.1.1. This chapter applies to cases involving crimes committed in violation of the UCMJ where any portion of the investigation, prosecution, or administrative action is conducted primarily by DoW components.

6.1.2. Notifications, consultations, and responsibilities discussed in this chapter are listed at the earliest possible stage in the military justice and discipline process in which they may arise. Many of these are continuing obligations that apply to multiple stages and/or throughout the process. Practitioners must be mindful of the continuing nature of these obligations and ensure their accomplishment as required.

6.1.3. The LRO is responsible for ensuring victims and witnesses receive the notifications listed within this chapter; however, in practice, this notification will generally be executed on the LRO's behalf by the SJA, VWAP personnel, trial counsel, or the case paralegal, unless otherwise noted herein. **Note:** If victims are represented by counsel, the personnel accomplishing notification must coordinate with counsel to determine how such notifications will be made (e.g., through the VC or directly to the victim).

6.2. Notification and Consultation Requirements.

6.2.1. VWAP personnel execute notification requirements on behalf of the commander, unless otherwise executed by the victim's commander and memorialized in writing. If the victim is represented by a VC, any notification must be coordinated with the VC. For offenses under OSTC authority, legal office personnel shall coordinate notifications with an STC prior to engaging with a victim.

6.2.2. Monthly Notice Required. All victims within the purview of VWAP personnel must be notified, no less than monthly, of the status of the investigation, prosecution, or alternate disposition of the allegation reported to law enforcement or the command, whichever is applicable, until final disposition is complete. **(T-0)** If a case is being monitored by a CMG (i.e., a case involving a report of sexual assault), the CMG requirement of a monthly command update to the victim may satisfy this monthly VWAP notice requirement. VWAP personnel must confirm the command update was made prior to concluding the VWAP notice requirement has been met.

6.2.3. Written Requirement. VWAP personnel are not required to provide notifications in writing, although it is highly encouraged. If VWAP personnel notify victims or witnesses in writing, then copies of such notifications must be retained with the legal office's case file. If VWAP personnel do not notify victims or witnesses in writing, VWAP personnel must annotate the notification in writing after the fact, and such annotation must be retained with the case file. Notifications may be limited to avoid endangering the safety of victims or witnesses, jeopardizing an ongoing investigation, disclosing classified or privileged information, or unduly delaying the disposition of an offense. **(T-0)**

6.2.4. Non-Participating or Non-Responsive Victims or Witnesses. In any case where a victim or witness declines to participate, notifications are not required, provided the victim or witness has affirmatively opted out of further updates. Such opt-outs must be provided by the victim or witness or a representative, including counsel, in writing, or—if verbally communicated—must be memorialized by the receiving VWAP personnel in writing. In either case, the written election must be retained in the case file. If no timely response from a victim, witness, or representative is received, the legal office must consult their superior legal office for guidance. A determination that a victim or witness is non-responsive, and therefore non-participating, lifts notification requirements. Such a determination must be memorialized by VWAP personnel in writing. A victim or witness who has either affirmatively opted out of notifications, or who has been deemed non-participating by virtue of being non-responsive, may receive notifications by affirmatively requesting them through VWAP personnel, OSTC, legal office personnel, or any other appropriate entity.

6.2.5. Notification through Counsel. Notification requirements are satisfied by notifying the VC or other counsel. In such cases, it is the responsibility of the VC or other counsel to inform the victim.

6.2.6. Notification through Appointed Representative. Notification requirements are satisfied by notifying the victim's representative if one is appointed on behalf of the victim by the court or convening authority. Representatives of victims and witnesses should receive prompt notification of information concerning cases. Close relatives of homicide victims should also receive prompt notification of information concerning cases so long as the relatives are not offenders. In general, a close relative is a spouse, parent, adult child, or sibling, however, VWAP personnel have discretion to determine whether other relatives should be included depending on the facts of the case and the wishes of the relatives. This paragraph should not be read to interfere with the rights of a minor victim to consult with and receive notifications from or through VC as discussed in **paragraph 3.7**. **Note:** A determination by VWAP personnel that a person qualifies as a "close relative" is independent of—and has no binding effect on—law enforcement agency heads' determinations of whether certain family members are entitled to rights under the Homicide Victims' Family Rights Act. In homicide cases, VWAP personnel should advise those people identified as "close relatives" for VWAP purposes that such identification does not necessarily grant any rights under the Homicide Victims' Family Rights Act.

6.2.7. Victim Consultation Limitations.

6.2.7.1. Consultation with the victim, as described in this chapter, may be limited if it could endanger the safety of the victim or a witness, jeopardize an ongoing investigation, disclose classified or privileged information, or unduly delay disposition of an offense.

6.2.7.2. Although the victim's views may be considered, the VWAP does not limit the responsibility and authority of officials involved in the military justice process from taking any action deemed necessary in the interest of good order and discipline, readiness, and the prevention of service-discrediting conduct.

6.2.8. Cases under the authority of OSTC. When an STC is assigned to a case, VWAP personnel should coordinate with the STC at the earliest feasible stage of the case to determine who will be responsible for required notifications to victims and/or witnesses in those cases. Depending on the particular facts of a given case, the assigned STC may prefer to provide

notice to victims of such events as a decision to refer charges, a decision to not prosecute, negotiation for a plea agreement or alternate disposition, case outcomes, etc. In the event the assigned STC wishes to provide notice to victims and/or witnesses, VWAP personnel should ensure there is a plan in place for the STC to inform the VWAP personnel when such notifications are made so that the VWAP personnel can document the notifications.

6.3. Victims of Certain Sex-Related and Domestic Violence Offenses—Additional Notification Requirements.

6.3.1. In addition to the notification requirements applicable to all victims as detailed in this chapter, victims who make allegations of certain qualifying sex-related offenses are entitled to notification of specific significant events in the investigation and prosecution of offenses, as well as specific notifications regarding decisions not to refer allegations to court-martial and any further disposition of those allegations. **(T-0)** Victims who make allegations of qualifying domestic violence offenses are entitled to specific notifications regarding decisions not to refer allegations to court-martial and any further disposition of those allegations. **(T-0)**

6.3.2. Qualifying Offenses. For purposes of this chapter, qualifying domestic-violence offenses are defined as violations of Article 128b, UCMJ. Qualifying sex-related offenses are defined as violations of the following UCMJ articles:

6.3.2.1. Article 120;

6.3.2.2. Article 120b;

6.3.2.3. Article 120c;

6.3.2.4. Article 130; and

6.3.2.5. Article 80, attempts of any of the above offenses.

6.4. Protective Orders.

6.4.1. VWAP personnel will inform victims and witnesses, or their counsel or representatives, of the availability of applicable no-contact orders, military protective orders (MPOs), and civilian protective orders (CPOs). See DAFI 51-201 for discussion regarding applicability of and procedures for obtaining no-contact orders, MPOs, and CPOs.

6.4.2. Assistance for Eligible Victims and Witnesses. If the individual requests assistance obtaining a no-contact order or protective order, VWAP personnel must determine eligibility for DAF legal assistance services and take the steps identified in **paragraph 2.16**.

6.4.3. Assistance for Ineligible Victims and Witnesses. If an individual requests assistance for a protective order, but is ineligible for either VC representation or legal assistance, or is entitled but chooses not to avail himself or herself of such assistance, VWAP personnel shall take the following steps:

6.4.3.1. No-Contact Order or MPO Requests. VWAP personnel shall provide the individual with the contact information for the responsible DAF law enforcement agency; ask the victim or witness, if willing, to provide contact information that can be relayed to the accused's commander to facilitate the request for a no-contact order or MPO; and/or forward the request for a no-contact order or MPO and the requestor's contact information to the applicable commander.

6.4.3.2. CPO Requests. VWAP personnel may inform the requester of resources within the local community which may enable the victim or witness to pursue a CPO. VWAP personnel will inform the commander, victim(s), witnesses, or their counsel or representatives that a violation of a CPO may be punishable under the UCMJ.

6.5. Intimidation and Harassment Safety Considerations for Victims and Witnesses.

6.5.1. All participants in the military justice process, including VWAP personnel, MCIOs, military law enforcement agencies, legal office personnel, and VCs are responsible for providing information to victims and witnesses of the services available in the event of intimidation or harassment. These responsibilities include:

6.5.1.1. Informing victims and witnesses of the right to receive reasonable protection from intimidation and harassment or similar threats by the accused or other individuals resulting from participation in the military justice process;

6.5.1.2. Instructing victims and witnesses to immediately report any intimidation, harassment, or similar conduct to military or civilian authorities; and

6.5.1.3. Promptly taking measures to provide protection in instances where a victim's or witness's life, well-being or safety is jeopardized or threatened.

6.5.2. Commanders and legal office personnel shall immediately notify appropriate law enforcement agencies of safety concerns.

Section 6B—Notification and Responsibilities During Investigation Through Preferral

6.6. Initial Legal Office Interaction with Victims and Witnesses.

6.6.1. Trial counsel must coordinate with the VWAP Coordinator or VWL to ensure availability of VWAP personnel at the initial victim or witness meeting.

6.6.2. At the first meeting with legal office personnel, VWAP personnel must:

6.6.2.1. Provide the VWAP packet discussed in **paragraph 2.8** to the victim or witness, if not previously provided.

6.6.2.2. Inform victims in detail of the applicable rights and privileges in military justice processes related to the offense and of available methods to assert their rights or privileges and to report or appeal violations. In SVIP cases, this notification must occur in the initial meeting, if not previously provided. This includes notifying victims who are subject to a request for interview by defense counsel that they have the right to have any interview take place in the presence of trial counsel, VC, civilian counsel for the victim, or a victim advocate. **(T-0)**

6.6.2.3. Notify victims of the right to petition for an Article 30a, UCMJ, pre-referral hearing to request relief from or quashing of an investigative subpoena.

6.6.2.4. Advise victims of the right to seek the advice of an attorney and of the potential eligibility for VC representation prior to questioning victims about a sexual offense. **(T-0)**

6.6.2.5. Ensure the DD Form 2701 has been provided and explained to all victims and witnesses. **(T-0)**

6.6.2.6. Ensure victims have been informed of the services in Sections **5B** and **6A** of this instruction, as applicable.

6.7. Jurisdiction Consultation Requirement for Victims of Certain Sex-Related Offenses. Victims of an offense listed in **paragraph 6.3.2** must be notified of the right to express a preference as to whether the offense will be prosecuted by court-martial or in a civilian court with jurisdiction over the offense in cases where the offense occurred in the United States, or any political subdivision, possession, or territory thereof. **(T-0)** See DAFI 51-201.

6.8. Disposition Consultation with Victims.

6.8.1. SJAs must ensure victims are given meaningful opportunity to consult with disposition authorities, which may include unit commanders, convening authorities, and OSTC, either in writing, telephonically, or in person prior to any decision concerning whether or not to prosecute, pursue a disposition by plea, or dismiss a charge involving a victim. Under ordinary circumstances, SJAs should encourage commanders to engage with victims or their counsel or representatives.

6.8.2. When the victim requests a verbal (e.g., telephonic, video teleconference, or in-person) consultation with the disposition authority, ensure the disposition authority is notified of this request prior to the disposition decision. Ensure the victim is notified of the disposition authority's decision on whether to grant a verbal consultation.

6.8.3. Solicit the victim's preference regarding the disposition of allegations involving the victim, including decisions to prefer or not to prefer charges or disposition of the offense by means other than court-martial. The victim's views must be solicited by written memorandum. A template for this solicitation may be found on the VMJD. If a victim is represented by a VC or other counsel, that counsel may provide the victim's views on behalf of the client.

6.8.3.1. If the victim elects not to provide written matters concerning his or her views on disposition, this should be annotated in the second indorsement on the template memorandum. If seven days have passed from solicitation of the victim's input without a response from the victim or counsel, the SJA may presume that the victim does not wish to express input as to disposition. In any case, such failure to provide disposition preference should be annotated in the second indorsement on the template memorandum.

6.8.3.2. The SJA provides the GCMCA or OSTC, as applicable, any statements solicited from the victim with regard to disposition in cases where initial disposition decisions are required to be forwarded to the GCMCA under DAFI 51-201. Additionally, if the victim makes any verbal statements to the disposition authority, the SJA ensures the statements are summarized in writing and forwarded to the GCMCA.

6.9. Apprehension and Pretrial Confinement Notifications to Victims.

6.9.1. Notify victims of:

6.9.1.1. The apprehension of the accused.

6.9.1.2. The accused's placement into pretrial confinement.

6.9.1.3. The seven-day review concerning the continuation of confinement prior to trial of the accused or any other public DAF hearing concerning continuation of confinement prior to trial of the accused. **(T-0)**

6.9.1.4. The victim's right to not be excluded and to be heard at a pretrial confinement hearing.

6.9.1.5. The victim's right to be heard and/or submit matters for consideration by the Pretrial Confinement Review Hearing Officer.

6.9.1.6. The accused's release or escape from pretrial confinement or any changes in pretrial restrictions unless such notice may endanger the safety of any person. **(T-0)**

6.10. Pre-Preferral Notifications to Victims and Witnesses.

6.10.1. Ensure victims and witnesses are provided with copies of DD Form 2702, explaining victims' and witnesses' rights and services.

6.10.2. Inform victims and witnesses about the military justice process, their role in the process, and how they may obtain information concerning the process or case. **(T-0)**

6.11. Disposition Short of Preferral. When allegations against a subject are disposed of other than by preferral of charges, a victim or witness shall be informed of the alternate disposition. **(T-0)** Victims and witnesses shall be provided as much relevant information as possible, consistent with the privacy rights of the accused and relevant third parties. If the disposition will feature administrative proceedings involving the victim (e.g., discharge board proceedings), ensure the victim (and counsel, if represented) is provided reasonable, timely, and accurate notice of the scheduling of those proceedings. Practitioners must ensure this continuing obligation is accomplished throughout the administrative process.

6.12. Preferral. Notify victims of the preferral of charges resulting from their allegations.

6.13. Notifications in Cases of Qualifying Sex-Related Offenses. Victims who make allegations of qualifying sex-related offenses are entitled to additional specific notifications concerning significant events. The following constitute significant events for which notification is required through preferral of charges: conclusion of the investigation and the initial disposition decision under R.C.M. 401. **(T-0)**

Section 6C—Notifications and Responsibilities After Preferral Through Start of Trial

6.14. Victim Notifications.

6.14.1. The SJA or designee will notify victims of:

6.14.1.1. Referral of charges or the decision not to prosecute.

6.14.1.2. Withdrawal of charges.

6.14.1.3. Dismissal of charges.

6.14.1.4. The military justice process, the role of the victim in the process, and how the victim can obtain additional information concerning the process or case.

6.14.1.5. For victims who suffered direct physical, emotional, or pecuniary harm, the opportunity to present to the court at sentencing a sworn or unsworn oral or written statement on the impact of the crime on the victim or mitigation, in compliance with applicable law and regulations, should the accused be convicted of the offense causing the harm. **(T-0)**

6.15. Disposition of Preferred Charges Short of Trial. Solicit the victim's preference regarding decisions to refer or dismiss charges, plea agreement negotiations—including relevant plea agreement terms—and requests for discharge or resignation in lieu of trial by court-martial. For cases under OSTC authority, VWAP personnel should coordinate early with the assigned STC to determine how this solicitation will be made and who will make it.

6.16. Preliminary Hearings.

6.16.1. The SJA or designee will provide witnesses testifying at the hearing and all victims:

6.16.1.1. Reasonable, timely, and accurate notice of the preliminary hearing location, date, and time.

6.16.1.2. Appropriate assistance in obtaining available services, such as transportation, parking, childcare, lodging, and courtroom translators or interpreters. Even when victims are represented by counsel, the legal office remains responsible for providing and arranging lodging, transportation, and other related services for the victim.

6.16.1.3. Assistance in obtaining prompt payment of witness fees and related costs for those individuals who are requested or ordered to appear at preliminary hearings and are entitled to reimbursement for their expenses under Articles 46 and 47, UCMJ, and R.C.M. 405(i). The SJA shall consider establishing local procedures for facilitating the payment of vouchers after normal duty hours when necessary to avoid undue hardship.

6.16.1.4. The SJA or designee will provide victims a waiting area out of sight and hearing of the accused and defense witnesses.

6.16.2. The SJA or designee will inform victims of:

6.16.2.1. The right not to be excluded from public portions of the preliminary hearing, unless the PHO determines testimony by the victim of an offense under the UCMJ would be materially altered if the victim heard other testimony at that hearing or proceeding.

6.16.2.2. The right to receive, upon written request, a copy of, or access to, the recording of a preliminary hearing, as soon as practicable following the conclusion of the hearing. See DAFI 51-201 for procedures to release the recording.

6.16.2.3. The right to have their VC (if applicable) present at all open sessions and all closed sessions involving their client.

6.16.2.4. If named in a specification presented at the preliminary hearing, the right to submit supplemental materials to the PHO and convening authority within 24 hours after the close of the hearing.

6.16.2.5. The right to petition the Air Force Court of Criminal Appeals for a writ of mandamus contesting a ruling in a preliminary hearing if the victim believes the ruling violates the victim's rights as enumerated in Article 6b, UCMJ, or afforded by M.R.E. 412, 513, 514, or M.R.E. 615.

6.17. Notifications in Cases of Qualifying Sex-Related Offenses. Victims who make allegations of qualifying sex-related offenses are entitled to additional specific notifications concerning significant events. From preferral through the start of trial, such victims are entitled to notice of all court proceedings (including arraignment and motions hearings). **(T-0)**

6.18. Notification of Further Disposition in Cases of Qualifying Sex-Related and Domestic Violence Offenses. Victims who have alleged qualifying sex-related offenses or qualifying domestic violence offenses must be provided notice when the determination is made to not refer preferred charges of a qualifying offense and informed no less than monthly of the status of further disposition. The victims of these offenses must also be notified of the final decision on any further disposition, to include the type of action taken, the outcome of the action (including any punishment or characterization of service as applicable), and other such information as the commander deems relevant. Such notifications must be made notwithstanding the Privacy Act. **(T-0)**

6.18.1. If the further disposition decision cannot practicably be made within 60 days of the non-referral decision, the victims of qualifying sex-related offenses and qualifying domestic violence offenses must be notified in writing and provided an explanation of the delay. This notification must continue to be made in writing every successive 30-day period for victims of qualifying sex-related offenses and qualifying domestic violence offenses until the disposition decision is made and the victim is so notified. **(T-0)**

6.18.2. For purposes of this requirement, "further disposition" includes no action, administrative action (verbal counseling, RIC, LOC, LOA, LOR, administrative demotion, etc.), administrative separation, nonjudicial punishment, referral of a lesser included or related offense that does not constitute one of the qualifying offenses, or subsequent referral of the qualifying offense.

6.18.3. The convening authority's disposition notification and delay notifications are provided by the servicing installation-level legal office on behalf of the convening authority. The servicing legal office should utilize the templates on the VMJD to provide such notifications. **Note:** This mandate does not require the release of the disposition documentation and is intended to serve only as notice of the convening authority's disposition decision.

6.18.4. These requirements apply to each qualifying offense alleged. For example, in a case with one victim that alleges three separate sexual assaults were committed by the accused, these requirements apply to each specification. Thus, if the convening authority decides not to refer any one of the specifications, the aforementioned notifications are required. Notification under this section is not required for non-qualifying offenses.

Section 6D—Trial Notifications and Responsibilities to Victims and Witnesses

6.19. Court-Martial Logistics. The logistical assistance requirements outlined in **paragraph 6.16.1** apply at all courts-martial proceedings.

6.20. Victim Notifications.

6.20.1. The SJA or designee will ensure victims are notified of:

6.20.1.1. The right to not be excluded from public portions of the court-martial unless the military judge determines testimony by the victim of an offense under the UCMJ would be materially altered if the victim heard other testimony at that proceeding.

6.20.1.2. The right to petition the Air Force Court of Criminal Appeals for a writ of mandamus contesting a ruling in a court-martial if the victim believes the ruling violates

the victim's rights as enumerated in Article 6b, UCMJ, or afforded by M.R.E. 412, 513, 514, or M.R.E. 615.

6.20.2. The SJA or designee will ensure victims are notified of the following events:

6.20.2.1. All court proceedings, including arraignment, motions hearings, and trial dates;

6.20.2.2. Withdrawal of charges; and

6.20.2.3. Dismissal of charges.

6.20.3. The SJA, or the detailed STC in a case under OSTC authority, will ensure trial counsel:

6.20.3.1. Notifies the victim of the intent to introduce any evidence implicating M.R.E. 412, 513, or 514, and serve a copy of any motions under those rules and responses on the victim or their counsel if applicable.

6.20.3.2. Confers with the victim regarding the disposition of the case, to include the acceptance of a guilty plea, the rendering of a verdict, or the withdrawal or dismissal of charges.

Section 6E—Post-Sentencing Notifications and Responsibilities to Victims and Witnesses

6.21. Victim Notifications.

6.21.1. The SJA or designee will ensure victims are notified of:

6.21.1.1. The sentence imposed, including general information regarding minimum release date, parole, clemency, and mandatory supervised release, if applicable.

6.21.1.2. Post-trial hearings.

6.21.1.3. Clemency submissions.

6.21.1.4. If the accused was found guilty at a court-martial of an offense pertaining to the victim, immediately notify the victim of the opportunity to submit, within ten days after the sentence is announced in a general or special court-martial or within seven days after the sentence is announced in a Summary Court-Martial, a written statement to the convening authority. See R.C.M. 1106A and DAFI 51-201, Section 20D. The SJA should consult with trial counsel to see if this right applies. The right applies only to offenses in which the convening authority may take action under R.C.M. 1109 or 1110.

6.21.1.5. The opportunity to receive a copy of or access to the recording of all open sessions of the court-martial, subject to the limitations in DAFI 51-201, upon written request and for the purpose of facilitating the submission of matters under RCM 1106A. The SJA or designee provides the victim with a copy of the recording.

6.21.1.6. The ability to make a personal appearance (or submit an audio, video, or written statement) before the Clemency and Parole Board when the hearing date occurs.

6.21.2. The SJA or designee will ensure victims are provided a copy of DD Form 2704-1 in order to capture victims' elections regarding their post-trial and appellate rights. VWAP personnel will assist victims in completing this form, as needed.

6.22. Access to Court-Martial Documents and Recordings.

6.22.1. The SJA or designee will promptly provide victims who have suffered direct physical, emotional, or pecuniary harm of any referred offense a copy of the Statement of Trial Results and a copy of any action taken by the convening authority. **(T-0)** See R.C.M. 1101(d) and 1109(h).

6.22.2. The SJA or designee will notify victims who have suffered direct physical, emotional, or pecuniary harm of any referred offense of the right to receive, upon written request, a copy of the Entry of Judgment. Provide the copy of the Entry of Judgment promptly upon receipt of written request. **(T-0)** See R.C.M. 1111(f)(3).

6.22.3. The SJA or designee will notify victims who testified or who were named in a specification referred to a special or general court-martial, or their counsel or representatives, of the right to receive a copy of the certified Record of Trial (ROT). See R.C.M. 1112(e)(1). Victims who testified shall be provided a copy upon certification; named victims who did not testify shall be provided a copy upon written request.

6.22.3.1. Redactions may be required to protect the privacy interests of third parties or for other reasons required by law or policy.

6.22.3.2. The victim's copy of the ROT must not contain any sealed material unless authorized by the military judge, upon a showing of good cause, in the sealing order.

6.22.3.3. The ROT must be served on the victim unless:

6.22.3.3.1. Service on the victim is impracticable due to the victim's unauthorized absence or a military exigency.

6.22.3.3.2. The victim requests otherwise on the record or in writing or declines a copy of the certified ROT on the record or in writing.

6.22.3.4. If service on the victim is impracticable due to unauthorized absence or military exigency, or if requested by the victim, serve the victim's copy on the VC, if represented.

6.22.3.5. If service on the victim is impracticable because the victim refuses the ROT or cannot be found after due diligence is exhausted, serve the victim's copy on the VC, if represented.

6.22.3.6. The SJA or designee will ensure any declination of or failure to serve the ROT on the victim, for any reason, is documented in writing and attached to the original record. **(T-0)**

6.23. Confinement Documentation and Notification.

6.23.1. Trial counsel or the VWL will provide victims and witnesses with a DD Form 2703 explaining the victim's post-trial rights. **(T-0)** List individuals' email addresses in the same boxes as their mailing addresses on the form.

6.23.2. For all cases resulting in a sentence to confinement, the trial counsel or VWL completes a DD Form 2704. **(T-0)**

6.23.2.1. One copy of the DD Form 2704 is sent to the Central Repository, AFSFC/FC, 1517 Billy Mitchell Boulevard, Joint Base San Antonio-Lackland, Texas, 78236-0119; one copy to the confinement facility where the accused is in post-trial confinement; and a

redacted copy to each of the appropriate victims and witnesses. A victim's or witness's copy must not contain the accused's personal information or any information concerning other victims or witnesses.

6.23.2.2. The SJA or designee ensures the DD Form 2704 is not included in any portion of any record to which the convicted member has access, including the ROT. The DD Form 2704 is exempt from FOIA release.

6.23.3. The SJA or designee will promptly notify the victim of any deferment or suspension of adjudged confinement.

6.23.4. Upon an offender's entry into confinement:

6.23.4.1. The VWAP Coordinator at the military confinement facility obtains the DD Form 2704 to determine victim or witness notification requirements. If the form is unavailable, the VWAP Coordinator at the military confinement facility must consult the SJA. The VWAP Coordinator ensures the accused's confinement records are clearly marked to indicate the case involves a victim who wants to be informed of the inmate's status.

6.23.4.2. If an accused is confined at or near the installation where tried, the installation Security Forces commander notifies the victim of an accused's escape, any form of release from custody, or death.

6.24. Confinement Facility Responsibilities.

6.24.1. The military confinement facility VWAP Coordinator is responsible for notifying the victims or witnesses who elected notification on the DD Form 2704 of confinee status changes. The military confinement facility VWAP Coordinator will use the DD Form 2705 to notify the victim or witness of changes and will record the date notifications are made on the DD Form 2705. **(T-0)**

6.24.2. Notifications shall be made for any of the following events:

6.24.2.1. The confinee's clemency or parole hearing date before the Air Force Clemency and Parole Board.

6.24.2.2. The transfer of the inmate from one facility to another (in addition to required victim and witness notifications, forward the DD Form 2704 to the gaining facility, with an informational copy to the Central Repository, AFSFC/FC).

6.24.2.3. The escape (and subsequent return to custody), work release, furlough, or any other form of release of the inmate from custody, including release into parole supervision.

6.24.2.4. Changes in confinee status for any emergency or special temporary home release granted the inmate.

6.24.2.5. The death of the confinee if the accused dies while in custody. **(T-0)**

6.24.2.6. The date of the Clemency and Parole Board hearing and the ability to make a personal appearance (or submit an audio, video, or written statement) to the board.

6.24.3. Remind victims and witnesses of responsibility to keep HQ AFSFC/FC informed of changes of address.

6.25. Appellate VWAP Requirements.

6.25.1. Legal offices are responsible for sending required post-trial documents to the Victim Appellate Notification Program (VANP) Coordinator at JAJI for qualifying victims. Qualifying victims are individuals named in a specification that resulted in a finding of guilty at a court-martial. However, victims who do not meet this criteria, but who would like to opt into the VANP, may do so to follow the appellate process for the case. Within five duty days, legal offices must send one copy of the DD Form 2704-1, one copy of the DD Form 2704 (as applicable), and the email template found on the VMJD to the VANP Coordinator at **AF.Appellate.NotificationWorkflow@us.af.mil**. Legal offices must send one email per victim to the VANP Coordinator, which may result in multiple emails per case.

6.25.2. In all appeals or writs, JAJI will maintain a record of victims who requested to be notified of post-trial actions involving the accused.

6.25.3. JAJI will notify victims of:

6.25.3.1. Filings at an appellate court.

6.25.3.2. Scheduling, including changes and delays of each public court proceeding or hearing the victim is entitled to attend.

6.25.3.3. Decisions made by the appellate courts.

6.25.3.4. When the offender's case is reviewed by the Office of the Judge Advocate General under Article 69, UCMJ.

6.25.4. For cases remanded to the trial court level, the VANP Coordinator will notify victim and the local VWAP Coordinator.

Chapter 7

WITNESS PRODUCTION

Section 7A—General Witness Production Matters for Preliminary Hearings

7.1. Production of Witnesses. Follow the rules and procedures in R.C.M. 405(i) for the production of witnesses. Additionally, all legal office personnel responsible for witness production should familiarize themselves with the guidance and requirements of the *Joint Travel Regulations (JTR)*, sections 0305 and 0307.

7.2. Notice. The parties must provide notice of the name and contact information for each witness they intend to call at the preliminary hearing to the PHO and the opposing party in accordance with timelines established by the PHO. **(T-0)**

7.3. Defense Witness Requests. All defense requests for witnesses must be in writing. This includes requests the defense provides to the PHO in the event the government objects to producing the requested witness(es).

7.4. Victim Testimony. A victim who is alleged to have suffered a direct physical, emotional, or pecuniary harm as a result of the matters set forth in a charge or specification under consideration and is named in one of the specifications under consideration may testify at a preliminary hearing, but shall not be required to do so against his or her will. **(T-0)**

7.5. Civilian Witnesses. A template letter to invite civilian witnesses to testify at a preliminary hearing is available on the VMJD.

Section 7B—General Witness Production Matters for Courts-Martial

7.6. Military Witnesses (R.C.M. 703(g)(1)). The SJA or trial counsel provides notice to the witness and the witness's commander of the time, place, and date the witness's presence is required and requests the commander issue any necessary orders to the witness. For witnesses located near the court-martial, informal coordination with the witness and command is often sufficient.

7.7. Civilian Witnesses (Article 46, UCMJ, and R.C.M. 703). A civilian may be compelled to appear as a witness before a court-martial, military commission, court of inquiry, or any other military court or board, or before any military or civil officer designated to take a deposition to be read in evidence before such a court, commission, or board if they were duly issued a subpoena. Except as provided in paragraphs **7.7.1** and **7.9**., DD Form 453, *Subpoena to Testify and/or Produce or Permit Inspection of Items in a Court-Martial*, is used to obtain the presence of a civilian witness. Civilian witness travel expenses are computed and reimbursed via the Defense Travel System (DTS) website.

7.7.1. Informal Service for Willing Witnesses (R.C.M. 703(g)(3)(E) and Discussion). When a civilian witness will appear voluntarily and a subpoena is issued, informal service of process by mail, including arrangements for travel and advance travel pay, is authorized. Sample letters to accomplish informal service are located on the VMJD.

7.7.2. Formal Service for Unwilling Witnesses (R.C.M. 703(g)(3)(E) and Discussion). If a witness is unwilling to attend the court-martial voluntarily, the trial counsel or designee ordinarily serves the subpoena personally on the witness and tenders travel orders. A witness

who violates a subpoena faces potential prosecution by federal authorities under Article 47, UCMJ. See **paragraph 7.8** and DAFI 51-201. A civilian witness may not be subpoenaed to testify at a court-martial outside the United States or at an Article 30a or 32, UCMJ, preliminary hearing.

7.7.2.1. Where it is impracticable for the trial counsel or designee to personally serve a subpoena (e.g., if the witness is not in the local area), the trial counsel shall contact the servicing SJA of the military installation nearest to the witness for assistance. Personal service may also be requested through the local law enforcement office or AFOSI detachment nearest the witness. Military law enforcement should only be considered as a last resort.

7.7.2.2. To meet the threshold requirement for requesting a warrant of attachment and subjecting the witness to federal prosecution under Article 47, UCMJ, the person serving the subpoena must provide the witness a means of reimbursement of fees and mileage or, in cases of hardship, ensure such reimbursement is provided in advance to the witness.

7.7.2.2.1. Except in cases involving a hardship requiring an advance payment, providing a witness instructions on the mechanism for filing a voucher for reimbursement shall ordinarily be sufficient to satisfy this requirement.

7.7.2.2.2. Trial counsel shall consult with the installation finance office to determine the proper method of obtaining any necessary funds for an advance payment. The SJA or trial counsel may be designated by the finance office as an accounting and finance certifying payment official in order to receive the witness travel funds for personal service on the witness. In the alternative, the finance office may draft a check to the witness that accompanies the subpoena for service or attempted service upon the witness. Refer to the *JTR*, section 010204, for advance payment processing.

7.7.3. A subpoena *duces tecum* (for documents) may be duly issued in accordance with Article 46, UCMJ, and R.C.M. 703, for a preliminary hearing, pursuant to Article 32(b), UCMJ. A search warrant or order may be issued pursuant to Article 46, UCMJ and R.C.M. 703A for electronic or stored communications prior to or after referral of any charges and specifications. Invitational travel orders (located on the VMJD) shall be issued to a civilian witness who voluntarily agrees to appear at such proceedings. *JTR*, section 030501.

7.8. Failure to Appear (R.C.M. 703(g)(3)(H) and Discussion). If the witness fails or refuses to appear, exhaust every reasonable means to secure live testimony. If necessary, use a DD Form 454, *Warrant of Attachment*, to compel the witness to appear or produce evidence. See R.C.M. 703(h)(2)(H), Discussion; *United States v. Ortiz*, 35 M.J. 391 (C.M.A. 1992). The witness may be prosecuted for failure to comply. See DAFI 51-201 for the process of obtaining a warrant of attachment.

7.8.1. Escorting and Detaining a Civilian Witness. Once a warrant of attachment is executed, the civilian witness must be under escort or otherwise accounted for at all times. Escort and housing of a civilian witness ceases once a determination is made by the authority issuing the warrant that the witness is no longer needed for the proceeding.

7.8.2. If the United States Marshals Service or other civilian law enforcement agency did not execute the warrant of attachment, a civilian witness must be accompanied by a minimum of

two escorts at all times. Armed escorts may be used as a last resort and only if absolutely necessary.

7.8.3. If it is necessary to house a civilian witness prior to the proceeding and the United States Marshals Service or other civilian law enforcement agency did not execute the warrant of attachment, coordinate with the United States Marshals Service to arrange for housing of the witness in the nearest available civilian detention facility. Every effort shall be made to minimize the amount of time a civilian witness is housed in a civilian detention facility. Never house a civilian witness in a military confinement facility.

7.8.4. Funding. The funding authority responsible for funding the travel of the witness is also responsible for funding the travel of personnel necessary to effect the execution of the warrant of attachment and escort the witness to the location specified in the subpoena. If detention of the witness is required, either at the location the warrant of attachment is executed or at the location specified in the subpoena, the funding authority responsible for funding the travel of the witness is also responsible for fees charged by the facility detaining the witness. If the entity executing the warrant of attachment is another Federal agency, such as the United States Marshals Service, funding will be accomplished through a Military Interdepartmental Purchase Request.

7.9. Foreign Area Clearance and Passport Applications. Allow appropriate time for the processing of foreign area clearances when witnesses must travel to courts-martial convened outside the United States. DoD Directive 4500.54E, *DoD Foreign Clearance Program*. Ensure the prospective witness has a passport or applies for one. The responsible SJA may request the installation nearest the requested witness process the passport application or the witness may personally process the passport application. The Department of State will normally process a passport application without the normal fee if the orders expressly provide for it. Contact the nearest passport office for further guidance.

Section 7C—Specific Witness Matters

7.10. Air Force Office of Special Investigations. Submit witness requests for special agents to the AFOSI detachment to which the agent is assigned. To submit a request for a deployed or TDY AFOSI agent, see **paragraph 7.11**.

7.10.1. Submit witness requests for threatened DAF personnel and confidential sources to the local AFOSI detachment. Threatened DAF personnel are uniformed service members in the DAF against whom "threats of bodily harm or death" are made. The threats must be "of such severity that military and civilian authorities are unable to provide the family's continued safety." See DAFI 36-2110.

7.10.2. Only AFOSI may contact another installation to request threatened DAF personnel and confidential sources as witnesses.

7.11. Requests for Deployed, TDY and Remote Tour Witnesses. Requests to return a witness who is deployed, on a remote tour, or TDY at a deployed location must be routed through the Combatant Command's service component's legal office prior to contacting the witness's deployed unit or making arrangements to return the witness for purposes of testifying. For example, for DAF witnesses, AFCENT/JA will coordinate requests with CENTCOM prior to any installation legal office attempt to make arrangements with the member's deployed/TDY/remote

command to return the witness. **Note:** Contact JAJM in cases requiring the use of central witness funding.

7.12. Escort or Attendant for an Active Duty Sexual Assault Victim. A sexual assault victim is authorized an escort or attendant when required to travel in order to testify or participate in proceedings (e.g., a preliminary hearing, pretrial motion hearing, or court-martial) in connection with the sexual assault. See *JTR*, paragraph 030704. Funding for such travel is provided by the convening authority.

7.13. Civilian Expert Witnesses.

7.13.1. When the prosecution determines government employment of a civilian expert is necessary, the government shall submit a written request to the court-martial convening authority, with notice to the defense, requesting authorization and approval of the employment and fixing the expert's compensation.

7.13.2. When the defense determines employment of a civilian expert is necessary for an adequate defense, they may submit a written request to the convening authority. Alternatively, the defense may submit a written request to a Defense Expert Authorizing Official (DEAO). The Chief, Trial Defense Division (JAJD), will appoint DEAOs from within the division. The Chief, JAJD, shall ensure each DEAO is properly trained prior to being appointed. DEAOs must be an active duty Air Force Judge Advocate in the grade of O-4 or above or a DAF civilian attorney in the grade of GS-13 or above.

7.13.2.1. DEAOs may authorize or deny authorization of a defense request for expert assistance and fix compensation for authorized experts. The DEAO may not authorize the use of an employee of the United States as a defense expert consultant/witness. A government employee may only be appointed as a defense expert consultant or witness by their leadership/command. Once appointed, however, the DEAO may approve travel for that expert upon sufficient justification by the defense, as set out below (see **paragraph 7.13.3.1.4**.).

7.13.2.2. When a DEAO authorizes a defense request for expert assistance, the GCMCA exercising jurisdiction over the accused is obligated to fund, travel, and reimburse the expert in accordance with the DEAO's authorization. This remains true regardless of whether charges have been, or are anticipated to be, referred to a special or general court-martial.

7.13.2.3. At a minimum, DEAO training will include instruction on the standards to be applied when considering a request for expert assistance (See **paragraph 7.13.3.1** et seq.), on the responsibility of the DEAO to verify that the requestor has demonstrated reasonable efforts to ensure that a similarly qualified expert to the one requested cannot be found at lower cost, and on record-keeping requirements associated with requests.

7.13.3. The defense may submit a request for expert assistance at any time. If the request is submitted to a DEAO, the DEAO must be outside of the rating chain of all defense counsel detailed to the case. If such a request is submitted to a DEAO prior to preferral of charges, the defense must demonstrate to the DEAO that it is more likely than not that charges will be preferred.

7.13.3.1. For requests submitted to a DEAO, the DEAO must determine that the expert assistance requested is necessary for an adequate defense. See R.C.M. 703(d). To do so, the request must establish that a reasonable probability exists that an expert would be of assistance to the defense, by showing:

7.13.3.1.1. Why the expert is needed;

7.13.3.1.2. What the expert will accomplish for the defense;

7.13.3.1.3. Why the defense is unable to accomplish the stated objective(s) without the assistance of the requested expert; and

7.13.3.1.4. If expert travel is requested, why in-person assistance is required, and why remote assistance would be inadequate.

7.13.3.2. The defense request to the DEAO for expert assistance and travel is attorney work product and is not discoverable. It is privileged information unless voluntarily disclosed by the defense. Ex parte communications between defense counsel and the DEAO are likewise not discoverable.

7.13.3.2.1. Each GCMCA will designate a resource advisor (RA) who is not a member of the GCMCA's legal office to process authorized defense expert requests. The request, authorization, approval, and appointment of the defense expert are ex parte and will not be provided in discovery to the prosecution absent an order issued by the detailed military judge. Resource advisors must not disclose the existence of requests, authorizations, approvals, and appointments of such defense experts to the prosecution team. The GCMCA is responsible for implementing procedures to fund the defense expert without providing or permitting notification of the defense request or expert's employment to the prosecution.

7.13.3.2.2. For purposes of this instruction, "the prosecution" includes any attorney or paralegal who has contributed or will contribute to the processing or prosecution of the case. During the RA approval process, any member of the prosecution who learns about information related to a defense request for expert assistance made to a DEAO or who becomes aware of the release of any such information to another member of the prosecution has a duty, as soon as practicable, to inform the defense of the nature and scope of the release. This duty applies whether the release of information was intentional or inadvertent. Release of such information may result in remedies as deemed appropriate by the detailed military judge.

7.13.3.3. Authorization by the DEAO is final and must be in writing. When the DEAO authorizes a request for expert assistance, the GCMCA must act in a timely manner to allow for the defense counsel or defense paralegal to enter into a MOA with the expert.

7.13.3.4. The DEAO's denial of a request for expert assistance does not preclude a subsequent request to that same DEAO or to an appropriate convening authority for the appointment of an expert. If a DEAO who has previously acted on a request for expert assistance is determined to be unavailable by the Chief, JAJD, or by the Deputy Chief, JAJD—when the Chief, JAJD, is unavailable—a subsequent request may be made to another DEAO.

7.13.3.5. The defense may also seek authorization for the employment of a defense expert witness or consultant through the military judge as permitted by R.C.M. 703. Should the military judge grant a defense motion for employment of a witness or consultant raised ex parte, the defense counsel should supply the military judge's authorization to the GCMCA's designee. Subsequent approval by the GCMCA's designee will follow the same process outlined in **paragraph 7.13.3.6** below.

7.13.3.6. When a request for expert assistance is authorized, the DEAO will notify the GCMCA's designee. The authorization memo must confirm that the client on whose behalf the expert was authorized is within the GCMCA's command chain, however the memo need not identify the client/accused. The authorization memo will include the name and contact information for the expert authorized and the defense counsel who requested the expert, the scope of services authorized with the cost, and whether travel is authorized.

7.13.3.6.1. Upon receipt of the authorization memo, the GCMCA's designee will verify funds are available and notify the requesting defense counsel.

7.13.3.6.2. A detailed military defense counsel or a defense paralegal, if there is no detailed military defense counsel, will sign an MOA with the expert on behalf of the government in accordance with the services authorized by the DEAO.

7.13.3.6.3. To ensure the GCMCA can timely compensate the expert upon completion of services, or when otherwise required, defense counsel will submit the expert's invoice(s) to the GCMCA's designee within 30 days of the conclusion of services, though failure to submit the invoice within 30 days will not be grounds for non-payment. The invoice submitted shall include:

7.13.3.6.3.1. The expert's business entity name as registered under SAM.GOV. If the expert is not affiliated with a business entity registered under SAM.GOV, contact the applicable resource advisor for guidance;

7.13.3.6.3.2. The expert's Unique Entity Identifier and Commercial and Government Entity Code;

7.13.3.6.3.3. The expert's business or home mailing address and cellular phone numbers;

7.13.3.6.3.4. The client's name, rank, unit, and installation of assignment;

7.13.3.6.3.5. The MOA signed by the expert and the defense counsel or the defense paralegal;

7.13.3.6.3.6. An Electronic Funds Transfer (EFT) Form (if necessary); and,

7.13.3.6.3.7. Written verification from defense counsel or defense paralegal that the expert is entitled to requested compensation based on services rendered under the MOA.

7.13.3.7. When an expert has fully utilized, or is anticipated to fully utilize, the number of hours, days, or dollar amount authorized by the DEAO, the defense may submit a supplementary request to the same DEAO for additional authorization. If the DEAO who previously acted on the initial request for expert assistance is determined to be unavailable by the Chief, JAJD, or by the Deputy Chief, JAJD (when the Chief, JAJD, is unavailable),

a subsequent supplemental request may be made to another DEAO. Like the original expert request, a supplemental request is privileged attorney work product and not discoverable. The request should include a copy of the original request and a statement explaining why the expert was unable to accomplish the objective(s) within the time allotted and how much more time or why travel is required. If authorized, the DEAO will notify the GCMCA's designee and defense counsel will enter into a new or amended MOA with the defense expert.

7.13.3.8. If, after referral, the defense determines an approved expert consultant will be present at any session of a court-martial for purposes of observing or potentially testifying, the defense must provide notice to trial counsel. Such notice must be made as soon as practicable, or in accordance with the military judge's scheduling order, if applicable. Notice should identify the approved expert and their field of expertise.

7.13.3.9. Nothing in these rules shall affect defense counsel obligations under the R.C.M., the Uniform Rules of Practice before Department of the Air Force Courts-Martial, and applicable orders issued by the detailed military judge. This includes defense counsel's obligations to make appropriate notifications when a decision is made that an appointed defense expert consultant is expected to testify as an expert witness during any preliminary hearing or court-martial session, and to submit a written summary of the expected testimony from the expert witness in accordance with the military judge's scheduling order and R.C.M. 703, or in the absence of a scheduling order, as soon as practicable after referral of charge(s).

7.13.4. The terms of employment for approved requests shall be memorialized in an MOA for Expert Witnesses. A sample memorandum is located on the VMJD. In the absence of advance approval, non-federal civilian experts may not be paid fees other than those to which they are entitled under R.C.M. 703(g)(3)(E). Use invitational travel orders for approved travel of non-federal civilian experts and to notify them of billeting and travel arrangements. The finance office associated with JAJM will not process a manual DD Form 1610, *Request and Authorization for TDY Travel of DoD Personnel,* or DD Form 1351-2, *Travel Voucher or Subvoucher.* The legal office is responsible for obtaining DTS access for all witnesses who travel for any court-martial related purpose. For defense expert consultants, the GCMCA should designate a person who may obtain DTS access for the approved expert so as to avoid premature disclosure to the government that a defense expert has been retained.

7.14. Civilians Employed by the United States. Civilian employees of the United States can be required to testify incident to their employment with appropriate travel orders issued for this purpose. A subpoena is not required for DoW civilian employees requested as witnesses; the appropriate travel order is the DD Form 1610. This is completed via DTS. For non-DoW federal civilian employees providing testimony incident to their employment, the employee's agency will prepare the appropriate travel order. Do not use invitational travel orders for federal civilian employees, contractors, or non-appropriated fund employees.

7.15. Subpoenas to the Media for Testimony or Matters. If considering issuing a subpoena to a member of the media, consult DAFI 51-201 for guidance.

Chapter 8

WITNESS FUNDING

Section 8A—Overview of Witness Travel Funding

8.1. Funding Authorities. DAFMAN 65-605, Volume 1, *Budget Guidance and Technical Procedures*, Table 11.2, prescribes the travel funding authorities for persons required for preliminary hearings and courts-martial.

8.2. Air Force Legal Central Funding. JAJM centrally funds and manages travel for certain persons identified in DAFMAN 65-605, Volume 1, Table 11.2, for travel required for Article 30a, UCMJ, pre-referral proceedings, Article 32, UCMJ, preliminary hearings, and courts-martial. For example, if a witness is being traveled within the same MAJCOM or FLDCOM for a relevant proceeding, then the convening authority responsible for the proceeding funds witness travel (e.g., if an active duty DAF witness is being traveled to testify at an Article 30a, UCMJ, pre-referral proceeding or Article 32, UCMJ, preliminary hearing, the SPCMCA is responsible for funding that witness's travel). JAJM does not fund travel for other matters related to disciplinary or administrative proceedings, such as travel to and from depositions and administrative discharge boards. JAJM does not fund costs associated with preparation days for judicial proceedings. If a court-martial, Article 30a, UCMJ, pre-referral judicial proceeding, or Article 32, UCMJ, preliminary hearing is conducted within Regular DAF channels, the applicable Regular DAF convening authority prescribed in DAFMAN 65-605, Volume 1, is responsible for Category A or B Reservist witness travel costs.

Section 8B—Requesting Funding

8.3. Requesting Air Force Legal Central Travel Funds. R.C.M. 703(c) governs the initial determination of whether a witness will be produced for a court-martial. Once the determination is made to require the presence of a person whose travel may be funded by JAJM, including a witness whose production is required by the military judge, the SJA requests travel funds electronically through the Witness Funding Management System (WFMS) on FLITE.

8.3.1. The WFMS tracks all requests submitted by legal offices and is currently the sole method for requesting central witness funding. This system provides an up-to-date status on each request. In addition, the system has bulletin and email capability that allows JAJM's Central Witness Funding branch to provide essential information to field legal offices.

8.3.2. All requests must be sent through the WFMS to JAJM at least 10, and no more than 30, calendar days before the witness is required to travel. Requests not received in a timely manner will require the convening authority to provide funding. A link to the WFMS ("witness funding") is accessible on the FLITE homepage under the Reports menu, JAGUARS sub-menu.

8.4. Roles and Responsibilities within the WFMS.

8.4.1. Requesters. All personnel assigned to the requesting legal office can create a request for central witness funding in the WFMS. The requester will need a Common Access Card and personal identification number to log into the database. Creating a request includes

supplying the initial information in the WFMS and forwarding the request to a local WFMS manager for approval.

8.4.2. Local WFMS Managers. The SJA, the Chief of Military Justice and the NCOIC of Military Justice are appointed as local WFMS managers. Only managers can approve, cancel and forward the initial request to JAJM. JAJM will not know a request is generated until the local manager approves and forwards the request to JAJM. The WFMS will not allow a manager to both create and approve or forward an initial funding request. Managers are responsible for managing the status of witnesses until the witness voucher is paid, expert fees are paid, if applicable, and all orders and vouchers are provided to JAJM. WFMS managers ensure all fields on the central witness funding request and constructive travel worksheet (if applicable) are completed accurately prior to forwarding the request to JAJM. After approval by the local manager, the request is forwarded to Central Witness Funding for review.

8.4.3. Central Witness Funding Branch. The Central Witness Funding branch approves or disapproves all requests. The requesting office is notified of the decision through the WFMS.

8.4.4. All requests received through the WFMS are assumed to be approved by the appropriate authority for witness production. JAJM does not determine whether a witness will or will not be produced for a proceeding. Witness production and witness funding are two separate processes; JAJM only determines whether or not the witness's travel will be centrally funded.

8.5. Responsibilities for Travel of Centrally Funded Witnesses.

8.5.1. JAJM Responsibilities.

8.5.1.1. JAJM is responsible for funding the witness to travel from their current location (Permanent Duty Station, leave, or Area of Responsibility) to the installation where the proceeding is being conducted.

8.5.1.1.1. Per diem rates are determined based on the *JTR*. If lodging is not available and either a non-availability number or a non-availability letter is provided, or there is a letter from the requesting legal office stating a dining facility is not operable, then full rate per diem is authorized.

8.5.1.1.2. JAJM considers funding rental vehicles in accordance with the *JTR*, paragraph 020209, Rental Vehicle, and **paragraph 020212**B.1, *Travel in and around the Temporary Duty Location*. An order-issuing official may authorize/approve a rental vehicle when advantageous to the government. A traveler's personal preference or minor inconvenience shall not be the basis for authorizing/approving rental vehicle use. If disapproved by JAJM, the convening authority may choose to fund a rental vehicle from a separate fund cite.

8.5.1.2. JAJM furnishes procedural instructions through email for centrally funded travel. JAJM does not fund costs associated with trial preparation. Central witness funding pays for a witness to travel one day prior to the start of the proceeding for stateside travel or two days prior to the start of the proceeding for travel to or from an overseas location. The convening authority may choose to fund trial preparation days from a separate fund cite.

8.5.2. Legal Office Responsibilities.

8.5.2.1. The requesting legal office is responsible for ensuring all temporary duty arrangements are completed in a timely manner (e.g., flight reservations, billeting,

transportation). It is the legal office's responsibility to ensure witnesses are transported to and from court, meals, and the lodging facility or hotel.

8.5.2.2. The requesting legal office's WFMS manager notifies JAJ immediately when the presence of a centrally funded witness is no longer required.

8.5.2.3. The requesting legal office is responsible for obtaining DTS access for the witness and will be responsible for processing the invitational travel orders. Once approved, the legal office will provide the invitational travel orders and the ticketed itinerary to the witness. The requesting legal office is responsible for filing the witness travel voucher. The finance office associated with JAJ will not process a manual DD Form 1610 or DD Form 1351-2.

8.5.2.4. The legal office shall provide justification for witnesses requiring more than six temporary duty days for stateside travel and eight temporary duty days for overseas travel. The legal office must obtain prior approval from JAJM for any deviations to the authorized travel itinerary or the organization approving such deviation may be responsible for the additional costs. Witnesses subject to recall by the court-martial shall remain in the local area until released to avoid travel itinerary deviations.

8.5.3. Expert Witnesses. JAJM only funds expert witnesses involved in urinalysis cases (e.g., forensic experts such as chemists, toxicologists, qualified physicians) and only when the expert has been approved by a convening authority to testify at a court-martial relating to urinalysis testing. JAJM does not fund consultants for either the government or defense, including in urinalysis cases.

8.5.3.1. Requesting Funding for an Expert. The witness fee per day, travel costs, and per diem must be included in the request. The request must include a statement of the convening authority's approval of the expert and the amount of compensation. In cases involving an expert urinalysis witness, the SJA for the requesting legal office must certify the attendance and testimony of the expert witness in writing before payment of expert or inconvenience fees can be made.

8.5.3.2. Non-Government Civilian Expert Witnesses. Before requesting funding for a non-government civilian expert witness, trial counsel must first confirm the unavailability of the forensic urinalysis experts at the Air Force Drug Testing Laboratory, Joint Base San Antonio-Lackland, Texas, or any other expert under contract with the DoW. SJAs shall obtain written agreements with non-government civilian expert witnesses fixing their rate of compensation and reimbursement for expenses. A sample agreement is located on the VMJD.

8.5.3.3. Fee Limits. JAJM funding for urinalysis expert witness fees is limited to $1,000 per day, with a maximum of $4,000 per witness, per case, for in-court testimony only. Expert witness fees paid by JAJM will not include payment for days devoted to travel, trial preparation, or consultation. Any agreement to pay amounts exceeding JAJM's limits will result in the convening authority accepting responsibility for the excess costs. The SJA must certify the attendance and testimony of expert witnesses before payment of expert fees can be made.

8.5.3.4. Inconvenience Fees. JAJM may fund up to $500 per expert witness, per case, for inconvenience or cancellation fees for prior approved urinalysis expert witnesses.

Inconvenience fees not approved in advance by JAJM will not be paid from central witness funds. Payment will be denied unless the written agreement, at the time the services of the witness were contracted, provided for inconvenience or cancellation fees. In every case, there must be a showing of actual inconvenience and financial loss to the witness, and cancellation within five calendar days of the authorized travel date. In order to demonstrate actual inconvenience and financial loss, more than a mere cancellation is required. Expert witnesses are expected to mitigate any financial loss caused by a cancellation.

8.5.4. Consultants. Central witness funds are used for expert witnesses, not consultants. The convening authority is responsible for payment of expert consultant services and fees. A central witness funding request constitutes a good faith representation the witness is expected to testify at the trial. However, should JAJM approve and fund an expert witness who does not ultimately testify at trial, the funding authorization will not be revoked.

8.6. Rates for Civilian Witnesses.

8.6.1. Civilians Employed by the United States. When summoned as a witness, a civilian employed by the U.S. Government is paid as authorized by the *JTR* or by the Federal Travel Regulation, 41 C.F.R. Subtitle F (for non-DoW civilian employees).

8.6.2. Civilians Not Employed by the United States. When summoned as a witness, a civilian not employed by the United States Government is paid fees and allowances authorized under 28 U.S.C. § 1821, *Per diem and mileage generally; subsistence*.

Section 8C—Processing Vouchers

8.7. Processing Travel Vouchers. The requesting legal office ensures travelers promptly prepare and submit travel vouchers to JAJM as applicable. All DTS users will accomplish their vouchers through DTS. The installation legal office must ensure JAJM promptly receives a copy of the paid DTS voucher. If a witness does not file a voucher within 30 days of the initial travel date, the orders will be automatically revoked.

8.7.1. If a military witness files a voucher 30 or more days after the initial travel date, the travel voucher may be returned as "no order on file" and a letter from the witness's commander may be required to explain why the voucher was not filed in a timely manner.

8.7.2. If a civilian witness files a voucher 30 or more days after the initial travel date, the travel voucher may be returned as "no order on file" and a letter may be required to explain why the voucher was not filed in a timely manner.

8.7.3. If an accused is adjudged confinement, ensure the accused's travel voucher is filed prior to entering confinement. Failure to file the travel voucher prior to entering confinement will require the member's unit to make arrangements for the confined member to file the voucher.

8.8. Processing Expert Fee Vouchers. Use the Standard Form 1034, *Public Voucher for Purchases and Services Other than Personal*, or Optional Form 1164, *Claim for Reimbursement for Expenditures on Official Business*. The SJA with administrative responsibility for the proceeding in which the expert witness testified ensures the expert witness prepares and submits the appropriate forms and supporting documents (e.g., receipts, fee schedule, etc.) to the servicing finance office. Centrally Funded Witness forms are sent to JAJM for processing. Before JAJM

will pay a civilian expert witness, the SJA must certify the dates of attendance and any scheduled witness fees (e.g., expert testimony, inconvenience). See the template included on the VMJD.

CHRISTOPHER A. EASON
Major General, USAF
The Judge Advocate General

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Privacy Act (5 U.S.C. § 552a)

10 U.S.C. § 801, et seq, *Uniform Code of Military Justice (UCMJ)*

10 U.S.C. § 1044, *Legal assistance*

10 U.S.C. § 1044e, *Special Victims' Counsel for victims of sex-related offenses*

10 U.S.C. § 1059, *Dependents of members separated for dependent abuse: transitional compensation; commissary and exchange benefits; lodging expenses*

10 U.S.C. § 1565b, *Victims of sexual assault: access to legal assistance and services of Sexual Assault Response Coordinators and Sexual Assault Victim Advocates*

10 U.S.C. § 9037, *Judge Advocate General*

28 U.S.C. § 1821, *Per diem and mileage generally; subsistence*

37 U.S.C. § 401, *Definitions*

32 C.F.R. Part 114, *Victim and Witness Assistance*

41 C.F.R. Subtitle F, *Federal Travel Regulation System*

Manual for Courts-Martial, current version

Joint Travel Regulations, current version

Rule for Court-Martial (R.C.M.) 306

Rule for Court-Martial (R.C.M.) 405

Rule for Court-Martial (R.C.M.) 703

Rule for Court-Martial (R.C.M.) 703A

Rule for Court-Martial (R.C.M.) 801

Rule for Court-Martial (R.C.M.) 1101

Rule for Court-Martial (R.C.M.) 1106A

Rule for Court-Martial (R.C.M.) 1109

Rule for Court-Martial (R.C.M.) 1110

Rule for Court-Martial (R.C.M.) 1111

Rule for Court-Martial (R.C.M.) 1112

Military Rule of Evidence (M.R.E.) 412

Military Rule of Evidence (M.R.E.) 513

Military Rule of Evidence (M.R.E.) 514

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DoDD 4500.54E, *DoD Foreign Clearance Program*, 31 May 2022

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DoDI 6400.07, *Standards for Victim Assistance Services in the Military Community*, 25 November 2013

DoDI 6495.02, Volume 1, *Sexual Assault Prevention and Response (SAPR) Program Procedures*, 28 March 2013

DoDM 5400.07-R_AFMAN 33-302, *Freedom of Information Act Program*, 27 April 2018

DoD 5400.11-R, *Department of Defense Privacy Program*, 14 May 2007

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AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

DAFI 36-2110, *Total Force Assignments*, 9 August 2024

AFI 36-2909_AETCSUP, *Air Force Professional Relationships and Conduct*, 27 October 2020

DAFI 36-3012, *Military Entitlements*, 6 April 2023

DAFI 40-301, *Family Advocacy Program*, 13 November 2020

AFI 51-110, *Professional Responsibility Program*, 12 January 2026

DAFI 51-201, *Administration of Military Justice*, 9 January 2026

AFI 51-304, *Legal Assistance, Notary, Preventative Law, and Tax Programs*, 22 August 2018

AFI 51-306, *Administrative Claims for and Against the Air Force*, 5 May 2021

DAFI 90-5001, *Integrated Resilience*, 23 January 2024

DAFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program*, 15 July 2020

DAFMAN 31-115, Volume 1, *Department of the Air Force Corrections System*, 22 December 2020

DAFMAN 51-203, *Records of Trial*, 21 April 2021

DAFMAN 51-507, *Enlisted Discharge Boards and Boards of Officers*, 27 July 2023

DAFMAN 65-605, Volume 1, *Budget Guidance & Technical Procedures*, 31 March 2021

DAFMAN 90-161, *Publishing Processes and Procedures*, 18 October 2023

Uniform Rules of Practice Before Department of the Air Force Courts-Martial, 1 August 2024

Adopted Forms

DD Form 453, *Subpoena to Testify and/or Produce or Permit Inspection of Items in a Court-Martial*

DD Form 1351-2, *Travel Voucher or Subvoucher*

DD Form 1610, *Request and Authorization for TDY Travel of DoD Personnel*

DD Form 2701, *Initial Information for Victims and Witnesses of Crime*

DD Form 2702, *Court-Martial Information for Victims and Witnesses of Crime*

DD Form 2703, *Post-Trial Information for Victims and Witnesses of Crime*

DD Form 2704, *Victim/Witness Certification and Election Concerning Prisoner Status*

DD Form 2704-1, *Victim Election of Post-Trial and Appellate Rights*

DD Form 2705, *Notification to Victim/Witness of Prisoner Status*

DD Form 2706, *Annual Report on Victim and Witness Assistance*

DD Form 2873, *Military Protection Order (MPO)*

DAF Form 847, *Recommendation for Change of Publication*

Standard Form 1034, *Public Voucher for Purchases and Services Other than Personal*

Optional Form 1164, *Claim for Reimbursement for Expenditures on Official Business*

Abbreviations and Acronyms

ABA—American Bar Association

ADC—Area Defense Counsel

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRPC—Air Force Rules of Professional Conduct

AFSFC/FC—Air Force Security Forces Center, Confinement and Corrections Directorate

ANG—Air National Guard

ARC—Air Reserve Component

AVC—Appellate Victims' Counsel

CAT—Case Administration Tool

CATCH—Catch a Serial Offender Program

CDVC—Chief District Victims' Counsel

C.F.R.—Code of Federal Regulations

CIP—Criminal Investigative and Prosecution

CMG—Case Management Working Group

CPO—Civilian Protective Order

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFMAN—Department of the Air Force Manual

DAFPD—Department of the Air Force Policy Directive

DAVA—Domestic Abuse Victim Advocate

DCMS—Disciplinary Case Management System

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense instruction

DoDM—Department of Defense Manual

DoW—Department of War

DRU—Direct Reporting Unit

DTS—Defense Travel System

ECR—Extraordinary Circumstances Request

FAP—Family Advocacy Program

FLDCOM—Field Command

FLITE—Federal Legal Information Through Electronics

FOA—Field Operating Agency

FOIA—Freedom of Information Act

GCMCA—General Court-Martial Convening Authority

LOA—Letter of Admonition

LOC—Letter of Counseling

LOR—Letter of Reprimand

LRO—Local Responsible Official

MAJCOM—Major Command

MCIO—Military Criminal Investigative Organization

MCM—Manual for Courts-Martial

MFRC—Military and Family Readiness Center

MOU—Memorandum of Understanding

MPO—Military Protective Order

M.R.E.—Military Rule of Evidence

OPR—Office of Primary Responsibility

PHO—Preliminary Hearing Officer

R.C.M.—Rule for Courts-Martial

RegAF—Regular Air Force Component

ROT—Record of Trial

SAPR—Sexual Assault Prevention and Response

SARC—Sexual Assault Response Coordinator

SG—Surgeon General

SJA—Staff Judge Advocate

SOR—Scope of Representation

SORN—System of Records Notice

SPCMCA—Special Court-Martial Convening Authority

SVIP—Special Victims Investigation and Prosecution Capability

TJAG—The Judge Advocate General

UCMJ—Uniform Code of Military Justice

USAFA—United States Air Force Academy

U.S.C.—United States Code

VA—Victim Advocate

VANP—Victim Appellate Notification Program

VC—Victims' Counsel

VMJD—Virtual Military Justice Deskbook

VP—Victims' Paralegal

VWAP—Victim and Witness Assistance Program

VWL—Victim Witness Liaison

WFMS—Witness Funding Management System

Office Symbols

AF/A1Z—Integrated Resilience Directorate

AF/JAT—Air Force Trial Judiciary

AF/JAX—Professional Development Directorate

AFOSI—Air Force Office of Special Investigations

JAJ—Military Justice and Discipline Directorate

JAJA—Appellate Defense Division

JAJD—Trial Defense Division

JAJG—Government Trial and Appellate Counsel Division

JAJI—Investigations, Inquiries and Relief Division

JAJM—Military Justice Law and Policy Division

JAJO—Office of Disability Counsel Division

JAJS—Victims' Counsel Division

Terms

Central Repository—A central organization for confinee information, charged with establishing procedures to ensure victims are notified of changes in confinee status, if victims elect to receive such notifications. The United States Air Force central repository is the Air Force Security Forces Center (AFSFC/FC), Confinement and Corrections Directorate/Victim and Witness Assistance Program Central Repository. It is located at 1517 Billy Mitchell Boulevard, Joint Base San Antonio-Lackland, Texas, 78236-0119. COMM: (210) 925-5607, Toll Free (877) 273-3098.

Component Responsible Official—The DAF official responsible for coordinating, implementing and managing the DAF VWAP. TJAG is the DAF component responsible official.

Court-Martial Convening Authority—A commander or equivalent person that exercises court-martial convening authority powers as set out in the UCMJ and MCM. In this instruction, the term Court-Martial Convening Authority may be used to refer to an individual authorized to convene courts-martial or to the authority to convene courts-martial.

Crime of Domestic Violence—An offense that amounts to a violation of Article 128b, UCMJ.

Child Victim—The definition of child victim varies based on the offense and context. Practitioners must consult the MCM to determine which definition of child victim applies.

Civilian Protective Order (CPO)—Formal protective orders issued by civilian court. See DAFI 51-201 for additional guidance and discussion.

Dependent—Generally, the spouse, unmarried child, parent of the member, or person in the member's legal custody, if those persons meet certain criteria. For further information, see 37 U.S.C. § 401.

Domestic Abuse Victim Advocate (DAVA)—A FAP staff member who provides domestic abuse victim advocacy services to victims of domestic abuse. See DAFI 40-301.

Entry of Judgment (EoJ)—Document which reflects the results of the court-martial after all post-trial actions, rulings or orders. See R.C.M. 1111 and Article 60c, UCMJ.

Family Advocacy Program (FAP)—The FAP is governed by DAFI 40-301. The FAP personnel develop, implement, and evaluate programs and policies to prevent and treat domestic abuse and child maltreatment. The FAP program includes Domestic Abuse Victim Advocates (DAVAs).

General Court-Martial Convening Authority (GCMCA)—Convening authority authorized to convene general courts-martial. See Article 22, UCMJ.

Local Responsible Official (LRO)—Commander responsible for identifying victims and witnesses of crimes, coordinating the delivery of services required by the VWAP, resourcing the VWAP, and establishing and chairing the VWAP council. Refer to **paragraph 2.9**.

Military Protective Order (MPO)—Formal protective orders issued by commanders on DD Form 2873. See DAFI 51-201 for DAF guidance on MPOs.

No-Contact Order—Order given by a senior or supervisory military member for another military member to have no-contact with another person for a period of time. See DAFI 51-201 for DAF guidance on no-contact orders.

Sexual Assault Prevention and Response (SAPR) Program—The SAPR program is governed by DAFI 90-6001, *Sexual Assault Prevention and Response Program*. It supports victims of sexual assault in cases that do not involve intimate partners or family members. The SAPR program includes Victim Advocates.

Sexual Assault Prevention and Response (SAPR) Victim Advocate (VA)—Personnel appointed by the SAPR Program to provide essential support, liaison services, and care to the victim.

Special Court-Martial Convening Authority (SPCMCA)—Convening authority authorized to convene special courts-martial. See Article 23, UCMJ.

Special Victim Investigation and Prosecution (SVIP) Capability—Team of specially trained prosecutors, paralegals, and victim witness assistance personnel who work with specially trained investigators, often from investigative agencies such as AFOSI, to provide advice, guidance, and support during the investigative and military justice process.

Staff Judge Advocate (SJA)—The SJA is the senior legal representative servicing the LRO. LROs may delegate their official duties and responsibilities to the SJA. The delegation must be in writing and addressed to the LRO's SJA by duty title rather than name. The SJA may further delegate those duties and responsibilities in writing to a VWAP Coordinator while maintaining oversight and overall responsibility for the program.

Statement of Trial Results (STR)—Document which is prepared after the announcement of sentence or acquittal and is inserted into the Record of Trial. See R.C.M. 1101 for further information.

Victim—A person who suffered direct physical, emotional, or financial harm as the result of an offense committed in violation of the UCMJ. Victims shall be identified at the earliest opportunity after the detection of an offense. **Note:** This definition determines those who are entitled to victim services in cases where VWAP has responsibilities. The definition of victim for other obligations or rights varies throughout this instruction based on statutory requirements. Where the definition of victim changes, it is noted. Victim designation for VWAP purposes includes persons alleged, by themselves or another, to have suffered harm from a UCMJ offense, regardless of the adjudication status of the offense. In the event a victim is identified as such in an investigation or prosecution but has not alleged harm by the offense, VWAP services shall still be provided.

Victim and Witness Assistance Program (VWAP) Coordinator—The individual designated in writing by the SJA to implement and manage the VWAP for an LRO. The coordinator must be a member of the legal office under the supervision (direct or indirect) of the SJA. The coordinator must possess sufficient skill, experience, and authority to carry out sensitive program management

and training responsibilities on behalf of the LRO and under the supervision of the SJA. The coordinator's grade should reflect the responsibilities, training, and expectations required to manage a program on behalf of the SPCMCA.

Victim and Witness Assistance Program (VWAP) Personnel—Term which includes LROs, SJAs, VWAP Coordinators, and VWLs. Note: Such personnel who delegate their VWAP responsibilities remain responsible to ensure victims and witnesses are notified of and provided services and notices where applicable.

Victim/Witness Liaison (VWL)—An individual appointed by the LRO or delegate to assist a victim or witness during the military justice (including the investigation phase) or applicable administrative process. The designation need not be in writing. The liaison may be a judge advocate, paralegal, or other legal office personnel appropriate under the circumstances of a particular case. A liaison is responsible for making contact between victims and service agencies and arranging for those services, when appropriate.

Virtual Military Justice Deskbook (VMJD)—Knowledge management website with military justice resources available to Air Force judge advocates.

Witness—A person who has information or evidence of a crime under the UCMJ and provides that information or evidence to a DAF official. When the witness is a minor, the term includes an appropriate family member. For purposes of obligations under VWAP and this instruction, the term "witness" does not include a purely defense witness, law enforcement personnel acting in their official capacity, government expert witnesses or consultants, or an individual allegedly involved in a crime as a conspirator, accomplice, or principal.